TERMS AND CONDITIONS FOR MULTI-CAMERA EVENT VIDEOGRAPHY SERVICES

Fraser Hawkshaw Media Limited

A company registered in England and Wales

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VAT Registration Number:
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These Terms and Conditions ("Terms") govern all services provided by Fraser Hawkshaw Media Limited ("we," "us," or "our") to the client ("Client," "you," or "your," as defined in Section 1.19) in connection with multi-camera event videography services. By confirming any Booking or otherwise instructing us to provide services, you agree to be bound by these Terms in full. These Terms, together with the Confirmation Email, the Client Onboarding Form (where completed), any Equipment Liability Acknowledgement and any guarantee given under Section 5.17, form the complete agreement between you and Fraser Hawkshaw Media Limited ("Agreement").

1. DEFINITIONS

1.1 Services: The filming, recording, and post-production editing of events, and any related services (including Live Broadcast Services, Provided Connectivity, and Post-Event Editing), as described in the Confirmation Email.

1.2 Deliverables: The final edited video(s), raw footage, or other media output specifically listed in the Confirmation Email.

1.3 Event Date: The date(s) on which Fraser Hawkshaw Media Limited will provide the Services.

1.4 Confirmation Email: The email issued by Fraser Hawkshaw Media Limited confirming the Client's Booking, specifying the Services, Deliverables, costs, and turnaround times.

1.5 Turnaround Time: The period between the Event Date and the delivery of the Deliverables, as stated in the Confirmation Email.

1.6 Extra Deliverables: Any Deliverables requested by the Client that are not included in the initial Confirmation Email.

1.7 Changes/Edits: Requests by the Client to alter the Deliverables after initial delivery.

1.8 Equipment: Any cameras, microphones, gimbals, tripods, storage media, masts, antennas, satellite and networking equipment, cabling, and other recording or transmission devices used by Fraser Hawkshaw Media Limited to provide the Services.

1.9 Force Majeure Event: Any event beyond the reasonable control of Fraser Hawkshaw Media Limited, including but not limited to acts of God, war, terrorism, strikes, epidemic or pandemic, severe weather, power outages, failure of utilities or telecommunications networks, or government restrictions.

1.10 Highlights Coverage: Filming intended to capture a curated selection of moments from an Event for the purpose of producing a highlights edit, rather than continuous or comprehensive coverage of the entire Event.

1.11 Full Set Capture: Filming intended to record a performance, set, or presentation in its entirety from start to finish, as specified in the Confirmation Email. Full Set Capture does not guarantee uninterrupted, continuous, or technically flawless recording and remains subject to the limitations set out in Sections 8.11 and 18.7.

1.12 Event: The specific occasion, performance, festival, or production in respect of which the Services are to be provided, as described in the Confirmation Email.

1.13 Hazardous Effects: Any planned or unplanned use of lasers, pyrotechnics, special effects, or other potentially hazardous production elements at the Event, as further described in Section 19.7.

1.14 Live Broadcast Services: The live transmission of audio and/or video content from the Event to an online platform, streaming service, private network, or broadcast destination, where specified in the Confirmation Email, as further described in Section 9.

1.15 Deposit: A payment made by the Client prior to the Event Date to secure a Booking with Fraser Hawkshaw Media Limited, the amount and terms of which shall be specified in the Confirmation Email or quote, as further described in Section 5.12.

1.16 Booking: The agreement between Fraser Hawkshaw Media Limited and the Client to provide Services in respect of a specific Event, formed upon the Client's acceptance of a quote or Confirmation Email in accordance with Section 2.6.

1.17 Track Selection: A request by the Client to identify specific audio tracks played during the Event, submitted to Fraser Hawkshaw Media Limited by way of timestamps for incorporation into post-production, as further described in Section 8.10.

1.18 Post-Production: The editing, colour grading, audio mixing, and other processing work carried out by Fraser Hawkshaw Media Limited following the Event Date in order to produce the Deliverables.

1.19 Client: The person or entity that accepts a quote or confirms a Booking under Section 2.6, as identified in the Confirmation Email. Where more than one person or entity is identified or accepts, each is jointly and severally liable.

1.20 End Client: Any third party (including a promoter, venue, artist, label, management company, brand, agency or production company) for whom, on whose behalf or for whose benefit the Client books the Services, or to whom the Client passes the Services or Deliverables.

1.21 Client Onboarding Form: The form, including any online form, through which the Client provides its details and accepts these Terms and Conditions, where completed.

1.22 Equipment Liability Acknowledgement: The written acknowledgement, signed by or on behalf of the Client under Section 19.1.7, of the Client's responsibility for Equipment where a secure, lockable area is not provided.

1.23 Venue: Any location where the Services are performed, including outdoor spaces, multiple rooms or temporary structures, as further described in Section 4.3.

1.24 Consumer: Has the meaning given in Section 30.7.1.

1.25 Embedded Services: Has the meaning given in Section 2.10.1.

1.26 Fraser Hawkshaw: Fraser Hawkshaw, the director of Fraser Hawkshaw Media Limited.

2. SCOPE OF SERVICES

2.1 Fraser Hawkshaw Media Limited shall provide Services as specified in the Confirmation Email.

2.2 The Client acknowledges and agrees that any Deliverables not specifically listed in the Confirmation Email will constitute Extra Deliverables and may incur additional charges.

2.3 Subject to Section 2.9, Fraser Hawkshaw Media Limited shall have discretion regarding equipment selection, camera placement, framing, and technical execution, in line with industry standards. Where reasonably practicable, the Client shall be given an opportunity to review and approve camera framing or positioning prior to recording, including via photographs or previews from camera monitors. Once approved (expressly or by proceeding without objection), such framing or setup shall be deemed accepted by the Client.

2.4 Any requests to change the scope of Services after confirmation may result in additional fees.

2.5 Where the Services include Highlights Coverage, the Client acknowledges that Fraser Hawkshaw Media Limited is engaged to capture selected moments only and does not guarantee the capture of every performance, moment, individual, or occurrence during the Event.

2.6 Quote Validity

2.6.1 Any quote issued by Fraser Hawkshaw Media Limited shall remain valid for a period of 30 days from the date of issue, unless a shorter or longer validity period is stated in the quote itself.

2.6.2 Fraser Hawkshaw Media Limited reserves the right to withdraw or revise a quote at any time before it has been accepted by the Client. Where a quote expires or is withdrawn, Fraser Hawkshaw Media Limited may reissue a revised quote reflecting any changes in costs, availability, or scope.

2.6.3 The Client accepts the quote and these Terms and Conditions by any of the following: (a) confirming in writing, including by email or message; (b) paying a Deposit or any other sum; (c) providing Event details, schedules, access, or other information to enable the Services; or (d) allowing Fraser Hawkshaw Media Limited to attend the Event or begin work. The Client shall be deemed to have read and accepted these Terms and Conditions, which are supplied with or linked from every quote and Confirmation Email, and no response to the Confirmation Email is required for a Booking to be binding. Acceptance after the expiry of the validity period shall be subject to Fraser Hawkshaw Media Limited's confirmation that the quote remains available.

2.6.4 Where costs increase between the date of a quote and the Event Date due to factors outside Fraser Hawkshaw Media Limited's reasonable control — including but not limited to increases in travel costs, accommodation, equipment hire, or third-party supplier fees — Fraser Hawkshaw Media Limited reserves the right to notify the Client and adjust the quoted fee accordingly, provided such notification is given as soon as reasonably practicable.

2.7 Right to Decline or Terminate a Booking

2.7.1 Fraser Hawkshaw Media Limited reserves the right to decline any Booking enquiry, or to terminate an existing Booking prior to the Event Date, at its sole discretion, including but not limited to circumstances where: (a) the Client or their representatives behave in an abusive, threatening, or unreasonable manner during the Booking process; (b) the Event involves content, activity, or requests that are unlawful, discriminatory, or that Fraser Hawkshaw Media Limited reasonably considers damaging to its professional reputation; or (c) the Client requests that Fraser Hawkshaw Media Limited act in a manner that would breach applicable law or a third party's rights.

2.7.2 Where Fraser Hawkshaw Media Limited terminates a Booking under this Section prior to the Event Date, any Deposit or prepayment shall be refunded less any non-refundable costs already incurred, and Fraser Hawkshaw Media Limited shall have no further liability to the Client.

2.8 Contracting Party, Authority and End Clients

2.8.1 The Client is Fraser Hawkshaw Media Limited's sole contracting party for the Booking and is liable as principal for all of the Client's obligations under this Agreement, including payment of all fees, charges and expenses. This applies whether or not the Client acts wholly or partly on behalf of, or for the benefit of, an End Client, and whether or not the End Client is named, disclosed or known to Fraser Hawkshaw Media Limited.

2.8.2 Where the Client acts, or says it acts, as agent, director, producer, manager or representative of an End Client, the Client:

(a) remains liable as principal and not merely as agent;
(b) acknowledges that Fraser Hawkshaw Media Limited has no contract with the End Client unless agreed in writing by Fraser Hawkshaw Media Limited;
(c) is solely responsible for its own arrangements with the End Client, including agreeing fees and recovering sums from the End Client, and Section 15.6.3 applies accordingly; and
(d) is responsible for the acts and omissions of the End Client and its representatives, contractors and attendees as if they were the Client's own, including for the purposes of Sections 19.4, 24.2 and 28.

2.8.3 The person confirming a Booking warrants that:

(a) they are authorised to bind the Client, and any company on whose behalf they act, to this Agreement;
(b) they have read and accepted these Terms and Conditions; and
(c) any End Client has authorised the Booking and the Client's acceptance of this Agreement.

2.8.4 If the person confirming a Booking did not have the authority warranted in Section 2.8.3, that person is personally liable for all sums due under this Agreement as if they were the Client.

2.8.5 On request, the Client shall promptly confirm in writing the full legal name and address of any End Client.

2.8.6 This Section does not apply to a Consumer to the extent it conflicts with Section 30.7.

2.9 Direction and Advice

2.9.1 Fraser Hawkshaw Media Limited will carry out the Services in line with the reasonable creative and technical direction of the Client's authorised representative under Section 4.6. Where that direction conflicts with Section 2.3, the Client's direction prevails, provided it is lawful, safe and within scope of the Services.

2.9.2 Fraser Hawkshaw Media Limited may offer advice and recommendations (including on camera positions, coverage, technical set-up, timing and delivery). The decision whether to follow that advice always rests with the Client.

2.9.3 Where the Client, or anyone acting for it (including an End Client), declines, overrides or does not act on advice, or gives direction that departs from it, Fraser Hawkshaw Media Limited is not liable for any resulting loss, technical failure, deficiency in coverage or Deliverables, or dissatisfaction of the Client, an End Client or any third party. No reduction, refund or credit arises, and the full fee remains payable in accordance with Section 5.

2.9.4 Fraser Hawkshaw Media Limited may record its advice or objections in writing (including by email or message) at the time, and any such record is evidence of the advice given and the decision made. Neither the giving of advice nor any failure to record it affects Section 2.9.3.

2.9.5 Nothing in this Section limits Fraser Hawkshaw Media Limited's rights under Sections 14.4, 19.5 and 24.4 to decline, pause or cease Services for safety or conduct reasons.

2.10 Embedded or Crew-Only Engagements

2.10.1 Where the Services are limited to providing Fraser Hawkshaw, or crew, in a specific role (such as a camera operator, vision mixer, IMAG director, technical director or editor) within a production controlled by the Client, an End Client or another production company ("Embedded Services"):

(a) the Client (or End Client) retains overall creative control of, and responsibility for, the production, the programme output and all other crew;
(b) Fraser Hawkshaw Media Limited is responsible only for performing its own role with reasonable skill and care;
(c) the fee is for attendance and performance of that role and is not conditional on the outcome, quality, approval, broadcast, publication or commercial success of the production;
(d) Fraser Hawkshaw Media Limited is not liable for the acts, omissions, equipment, signal feeds or networks of others, or for the production's output; and
(e) Sections 2.8, 2.9 and 5.16 apply in full.

3. MULTI-EVENT AND SERIES BOOKINGS

3.1 Where the Client books a series of Events together under a single Confirmation Email (a "Series Booking"), each Event shall be treated as a separate Booking for the purposes of this Agreement, save as set out in this Section.

3.2 Any discount offered for a Series Booking is conditional on all Events in the series going ahead as booked. Where the Client cancels one or more Events in the series, Fraser Hawkshaw Media Limited may invoice the difference between the discounted fee and its standard fee for the Events already performed.

3.3 Unless otherwise stated in the Confirmation Email, any Deposit paid for a Series Booking shall be held against the final Event in the series.

3.4 Where the Client has paid in advance for a Series Booking and cancels one or more Events, Fraser Hawkshaw Media Limited shall refund the amount paid for the cancelled Events, less any cancellation charges payable under Section 15 and any amount invoiced under Section 3.2.

4. CLIENT RESPONSIBILITIES

4.1 The Client shall provide accurate information regarding the Event, including venue access times, schedule, and any special requirements. Failure to provide such information may affect the quality or timing of the Services, for which Fraser Hawkshaw Media Limited shall not be liable.

4.2 The Client shall ensure timely and unrestricted access to the Event venue for Fraser Hawkshaw Media Limited staff and equipment. Any delays caused by the Client, venue staff, or other third parties that prevent timely setup or filming may impact the

delivery, quality, or scope of the Services. Fraser Hawkshaw Media Limited shall not be liable for any resulting reduction in service, Deliverables, or deadlines.

4.3 The Client shall provide full and safe access to all areas of the Venue required for filming, including any permissions or approvals from Venue management.

4.4 Client Cooperation: The Client agrees to cooperate fully with Fraser Hawkshaw Media Limited, including providing timely responses, approvals, and information. Delays caused by the Client may impact delivery schedules, and Fraser Hawkshaw Media Limited shall not be liable for any resulting delays or additional costs.

4.5 Client Responsibility for Attendees: The Client is responsible for notifying all participants, attendees, or performers that recording will take place during the Event. Fraser Hawkshaw Media Limited shall not be liable for any objections, complaints, or claims from attendees, except where Fraser Hawkshaw Media Limited fails to follow reasonable industry standards in the filming process.

4.6 Authorised Representative

4.6.1 The Client shall nominate a single authorised representative who shall have authority to provide instructions, approvals, and decisions on behalf of the Client before, during and after the Event, including approval of Deliverables.

4.6.2 Fraser Hawkshaw Media Limited shall be entitled to rely on instructions given by such representative without further verification (and, where the Client acts for an End Client, instructions from that End Client's representative).

4.6.3 Fraser Hawkshaw Media Limited shall not be liable for any issues arising from conflicting or unclear instructions provided by multiple parties.

4.6.4 Instructions given by anyone who appears to be acting for the Client or an End Client at the Event shall be treated as given by the authorised representative, unless Fraser Hawkshaw Media Limited has been told otherwise in writing in advance.

4.7 Third-Party-Supplied Footage

4.7.1 Where the Services involve editing footage captured or supplied by a third party (including but not limited to a venue, promoter, or other production company) rather than footage captured directly by Fraser Hawkshaw Media Limited and its own team (including crew and subcontractors engaged under Section 25.1), the Client is responsible for confirming, in writing and prior to Fraser Hawkshaw Media Limited quoting or commencing any work, the scope, volume, and format of footage that will be made available.

4.7.2 Fraser Hawkshaw Media Limited shall not be liable for any inability to deliver the agreed number or scope of Deliverables where such inability arises from the third party providing less footage, different footage, or more restricted access to footage than was anticipated at the time of quoting.

4.7.3 Where the volume or scope of third-party-supplied footage available on the day is materially less than anticipated at the time of quoting, Fraser Hawkshaw Media Limited reserves the right, at its sole discretion, to either (a) proceed with editing the available footage into the maximum number of Deliverables reasonably achievable, or (b) treat the reduced availability as a change of scope under Sections 2.4 and 31.10, entitling Fraser Hawkshaw Media Limited to revise the fee, Deliverables, or turnaround time accordingly.

4.7.4 The full Service fee quoted and agreed in the Confirmation Email shall remain payable in full regardless of the volume of third-party-supplied footage actually made available, save that Fraser Hawkshaw Media Limited may, at its sole discretion, agree to a proportionate reduction where it considers this appropriate in the circumstances.

4.7.5 The Client acknowledges that Fraser Hawkshaw Media Limited has no control over, and cannot guarantee, the availability, quality, format, or completeness of any third-party-supplied footage, and that any restrictions imposed by the third party on access to or use of such footage are outside Fraser Hawkshaw Media Limited's reasonable control.

4.7.6 Fraser Hawkshaw Media Limited shall not be liable for any deficiency in the quality, resolution, framing, exposure, stability, focus, or technical standard of third-party-supplied footage, nor for the extent to which such deficiencies are reflected in the final Deliverables. Fraser Hawkshaw Media Limited will use reasonable skill and care when editing such footage but does not guarantee to correct, enhance, or disguise limitations inherent in source material it did not capture.

4.8 Backstage and Restricted Area Access

4.8.1 Where the Services require Fraser Hawkshaw Media Limited's crew to access backstage areas, DJ booths, artist areas, or other restricted or secured zones at the Venue, the Client is responsible for arranging and confirming such access in advance, including any passes, credentials, or approvals required from venue security, artist management, or event organisers.

4.8.2 Fraser Hawkshaw Media Limited shall not be liable for any reduction in coverage, missed footage, or inability to perform the Services arising from a failure or refusal by venue security, artist management, or any third party to grant agreed access to restricted areas, whether or not such refusal was anticipated at the time of Booking.

4.8.3 Where access to a restricted area is denied or withdrawn on the day of the Event, Fraser Hawkshaw Media Limited will use reasonable efforts to adapt coverage using alternative positions where practicable, but does not guarantee that coverage will be equivalent to that which would have been achieved with the originally intended access.

4.9 Venue Facilities

4.9.1 Unless otherwise stated in the Confirmation Email, the Client shall provide, or ensure that the Venue provides, at no cost to Fraser Hawkshaw Media Limited:

(a) access to a safe and reliable mains power supply at each agreed camera, vision mixing, and streaming position;
(b) a suitable covered position for vision mixing, monitoring, or streaming equipment, including a table and a clear sightline where required;
(c) vehicle access and parking, or a loading point, reasonably close to the Venue for load-in and load-out;
(d) access to an audio feed from the Venue's sound system, in accordance with Section 8.5;
(e) access to the Venue at the agreed load-in time, allowing sufficient time for setup before the Event begins; and
(f) access to drinking water, toilets, and a rest area for crew.

4.9.2 Where any of the facilities in Section 4.9.1 are not provided, Fraser Hawkshaw Media Limited shall not be liable for any resulting impact on the Services or Deliverables, and any reasonable additional costs incurred (including generator hire, parking, or alternative equipment) shall be invoiced to the Client in accordance with Section 5.

4.10 Filming Permissions and Rights

4.10.1 The Client warrants that it, and any End Client, has the authority of the promoter, organiser and Venue to commission the filming, recording and, where booked, live streaming of the Event, and to use the Deliverables as described in the Confirmation Email.

4.10.2 The Client is responsible for obtaining, before the Event Date, all consents, permissions and clearances needed from performers, artists, DJs, their management, labels, agents and any other rights holders for the Event to be filmed, recorded and (where booked) live streamed, and for the Deliverables to be published as intended. This includes any performer or artist approval of footage that is required.

4.10.3 The Client shall tell Fraser Hawkshaw Media Limited in writing, before the Event Date, about any no-filming rule, embargo, approval requirement or other restriction that applies to any performer, set or area.

4.10.4 Where the Services include Live Broadcast Services, the Client is also responsible for all performing-rights, music and other licences needed for the live transmission, including licences from PRS for Music, PPL and the streaming platform, and for confirming that any licence held by the Venue covers live streaming. Sections 9.5.3 and 16.12 apply.

4.10.5 On request, the Client shall promptly confirm in writing that it has complied with this Section.

4.10.6 If a performer, rights holder, promoter or the Venue withdraws permission or restricts filming, Fraser Hawkshaw Media Limited may pause, restrict or stop the Services. This is not a failure of service, no refund or reduction applies, and Section 5 continues to apply. This does not limit Sections 14.4 or 24.4.

4.10.7 Section 2.8 applies, so the Client is responsible for any End Client's compliance with this Section.

5. PAYMENT TERMS

5.1 Payment for Services is due within 30 days of the Event Date, unless otherwise specified in the Confirmation Email. Any other invoice issued under this Agreement (including for cancellation charges, Post-Event Editing, expenses, or Loaned Media) is payable within 14 days of the invoice date.

5.2 Late Payment

5.2.1 If payment is not received by the due date, Fraser Hawkshaw Media Limited reserves the right to charge interest on overdue amounts in accordance with the Late Payment of Commercial Debts (Interest) Act 1998, or such other rate as may be agreed in writing.

5.2.2 Fraser Hawkshaw Media Limited further reserves the right to recover any reasonable costs incurred in the recovery of overdue payments, including administrative and legal costs where permitted by applicable law.

5.2.3 Fraser Hawkshaw Media Limited is also entitled to the fixed-sum compensation for recovery costs provided by the Late Payment of Commercial Debts (Interest) Act 1998 in respect of each overdue invoice.

5.3 The Client shall remain liable for all payments due even if the Event is cancelled, subject to Sections 14 and 15.

5.4 All payments shall be made in full, without set-off, deduction, or counterclaim.

5.5 Fees for Extra Deliverables or additional changes beyond the scope permitted in Section 10 will be invoiced separately and are payable under the same terms.

5.6 Licence Conditional on Payment

5.6.1 Upon delivery of the Deliverables, the Client is granted the non-exclusive, perpetual licence set out in Section 16.2, subject to the conditions in this Section 5.6.

5.6.2 This licence is conditional upon payment being made in full within the timeframes set out in Section 5.1.

5.6.3 If payment is not received by the due date, all usage rights granted to the Client shall be automatically suspended, without notice, until all outstanding amounts have been paid in full.

5.6.4 Any continued use, publication, or distribution of the Deliverables during a period of suspension shall constitute unauthorised use and may be treated as copyright infringement.

5.6.5 Upon receipt of full payment, the licence shall automatically resume.

5.7 Payment and Non-Withholding of Fees

5.7.1 The Client agrees that payment for Services shall not be withheld, delayed, or reduced on the basis of subjective dissatisfaction of the Client or any End Client where Fraser Hawkshaw Media Limited has performed the Services in accordance with this Agreement.

5.7.2 Any concerns regarding Deliverables must be raised in good faith and in accordance with the revisions process set out in Section 10. Such concerns shall not affect the Client's obligation to pay all invoiced amounts in full and on time.

5.7.3 The Client shall not set off, deduct, or withhold any amounts due under this Agreement in respect of any dispute, claim, or alleged deficiency in the Services, except where expressly agreed in writing.

5.7.4 Where a genuine dispute arises, both parties agree to act reasonably and in good faith to resolve the matter; however, all undisputed amounts shall remain payable in accordance with the agreed payment terms.

5.8 Accepted Payment Methods

5.8.1 All payments due under this Agreement shall be made by one of the following methods unless otherwise agreed in writing:

(a) bank transfer (BACS) to the bank account details provided on the relevant invoice;
(b) international wire transfer (SWIFT) where the Client is based outside the United Kingdom, subject to Section 5.10; or
(c) such other payment method as Fraser Hawkshaw Media Limited may agree in writing on a case-by-case basis.

5.8.2 Fraser Hawkshaw Media Limited does not accept payment by cash, cheque, or cryptocurrency unless expressly agreed in writing in advance.

5.8.3 Payment shall be deemed received only when the full invoiced amount has cleared into Fraser Hawkshaw Media Limited's nominated bank account. Initiation of a transfer does not constitute payment for the purposes of this Agreement or any payment deadline set out herein.

5.8.4 The Client shall use the bank account details provided on the relevant invoice. Fraser Hawkshaw Media Limited shall not be liable for misdirected payments where the Client has used incorrect or outdated account details. In the event of any uncertainty regarding payment details, the Client should contact Fraser Hawkshaw Media Limited directly to verify before making any transfer.

5.8.5 Fraser Hawkshaw Media Limited will never request a change of bank account details by email alone. Where the Client receives any communication purporting to change payment details, they should verify this directly with Fraser Hawkshaw Media Limited by telephone before making any payment. Fraser Hawkshaw Media Limited shall not be liable for losses arising from the Client acting on fraudulent payment instructions without such verification.

5.9 Currency

5.9.1 Unless otherwise agreed in writing, all fees, charges, and invoices issued by Fraser Hawkshaw Media Limited shall be denominated in pounds sterling (GBP).

5.9.2 Where a Client based outside the United Kingdom requests invoicing in a currency other than GBP, Fraser Hawkshaw Media Limited may agree to this at its sole discretion. Any such agreement must be confirmed in writing prior to the issuance of the invoice. Fraser Hawkshaw Media Limited reserves the right to apply an exchange rate of its choosing at the time of invoicing.

5.9.3 Where payment is made in a currency other than GBP, the Client shall ensure that Fraser Hawkshaw Media Limited receives the full invoiced amount in GBP after conversion. Any shortfall arising from exchange rate fluctuation or conversion shall be treated as an outstanding balance and shall remain payable by the Client in accordance with this Section.

5.10 International Transfers and Associated Costs

5.10.1 Where payment is made by international wire transfer or SWIFT, all bank charges, transfer fees, intermediary bank fees, and currency conversion costs shall be borne entirely by the Client.

5.10.2 Fraser Hawkshaw Media Limited shall not be liable for any delay in payment processing caused by international banking systems, intermediary banks, or currency conversion processes. However, such delays shall not extend or suspend any payment deadline under this Agreement, and late payment charges under Section 5.2 shall apply from the original due date regardless.

5.10.3 The Client is responsible for ensuring that their bank is instructed to send payments on a full payment basis (sometimes referred to as OUR charges) so that Fraser Hawkshaw Media Limited receives the full invoiced amount without deduction. Where Fraser Hawkshaw Media Limited receives less than the full invoiced amount due to deduction of intermediary or correspondent bank charges, the shortfall shall be treated as an outstanding balance payable by the Client.

5.11 VAT

5.11.1 All fees quoted by Fraser Hawkshaw Media Limited are exclusive of Value Added Tax (VAT) unless expressly stated otherwise.

5.11.2 VAT shall be charged at the prevailing rate applicable at the time of invoicing and shall be shown separately on all invoices.

5.11.3 Where Services are provided to a Client based outside the United Kingdom, VAT treatment shall be determined in accordance with applicable UK VAT legislation and HMRC guidance at the time of supply. The Client is responsible for any VAT, sales tax, withholding tax, or equivalent fiscal obligations arising in their own jurisdiction.

5.11.4 Where a Client is required by local law to deduct withholding tax from payments made to Fraser Hawkshaw Media Limited, the Client shall gross up the payment so that Fraser Hawkshaw Media Limited receives the full invoiced amount after any such deduction. Fraser Hawkshaw Media Limited shall not be responsible for reclaiming withholding tax deducted by the Client.

5.12 Deposit and Booking Confirmation

5.12.1 Fraser Hawkshaw Media Limited may require the Client to pay a Deposit prior to confirming a Booking. Where a Deposit is required, the amount and payment deadline will be specified in the Confirmation Email or quote. The Deposit is non-refundable except as set out in Section 5.12.3, and is transferred to a new date only as set out in Section 14.6.

5.12.2 Where a Deposit is required, a Booking shall not be considered confirmed until the Deposit has been received in full by Fraser Hawkshaw Media Limited. Fraser Hawkshaw Media Limited reserves the right to accept other Bookings for the same date until a Deposit is received.

5.12.3 The Deposit shall be deducted from the total Service fee due. Subject to Section 14.6, where the Client cancels the Services, the Deposit shall be retained by Fraser Hawkshaw Media Limited regardless of the notice period given, and shall be credited against any cancellation charges payable under Section 15. The Deposit shall be refunded only where the Services are not performed because:

(a) Fraser Hawkshaw Media Limited terminates the Booking under Section 2.7;
(b) Fraser Hawkshaw Media Limited cancels the Services under Section 14.4 for reasons other than the Client's breach;
(c) a Force Majeure Event occurs, in which case Section 22.2 applies;
(d) travel disruption prevents attendance, in which case Section 23.3 applies; or
(e) no suitable substitute is available under Section 25.3.3.

In each case, the refund shall be made less any non-refundable costs already incurred by Fraser Hawkshaw Media Limited, save where the Services are not performed due to Fraser Hawkshaw Media Limited's own default.

5.12.4 For international shoots or Events requiring significant advance expenditure by Fraser Hawkshaw Media Limited, including but not limited to flights, accommodation, carnets, or equipment hire, Fraser Hawkshaw Media Limited reserves the right to require an increased Deposit of up to 100% of the total Service fee at the time of Booking. Any such requirement will be communicated clearly at the time of quoting.

5.13 Chargebacks and Payment Reversals

5.13.1 Where the Client initiates a chargeback, payment reversal, or dispute with their bank or payment provider in respect of any payment properly due under this Agreement, without first following the process set out in Sections 5.7 and 10.7, this shall be treated as a material breach of this Agreement.

5.13.2 The Client agrees to withdraw any such chargeback or payment dispute upon request where Fraser Hawkshaw Media Limited has performed the Services in accordance with this Agreement.

5.13.3 Where a chargeback or payment reversal succeeds, all usage rights and licences granted under Section 5.6 shall automatically be suspended in accordance with Section 5.6.3, and Fraser Hawkshaw Media Limited reserves the right to recover the disputed amount, together with any bank or payment provider fees, administrative costs, and reasonable legal costs incurred in disputing or recovering it.

5.14 Invoice Disputes

5.14.1 The Client shall notify Fraser Hawkshaw Media Limited in writing of any dispute regarding an invoice within 7 days of the invoice date, identifying the disputed items and the reasons for the dispute.

5.14.2 Where no dispute is raised within that period, the invoice shall be deemed accepted by the Client, save for any obvious clerical or arithmetical error, which either party may correct.

5.14.3 Any undisputed portion of an invoice shall remain payable by the due date in accordance with Section 5.7.4. Any disputed amount later agreed or found to be due shall be payable within 7 days of resolution, and interest under Section 5.2 shall apply from the original due date.

5.14.4 This Section 5.14 applies to invoice amounts only. It does not limit the Client's right under Section 10 in respect of Deliverables, and the periods in Section 10 are not shortened by this Section.

5.15 Suspension and Insolvency

5.15.1 While any invoice is overdue, Fraser Hawkshaw Media Limited may suspend work on any Booking for the Client, withhold Deliverables, and decline to confirm further Bookings, without liability.

5.15.2 If the Client becomes insolvent, enters administration or liquidation, proposes an arrangement with creditors, or ceases to trade, Fraser Hawkshaw Media Limited may terminate any Booking immediately by written notice, and all sums due under this Agreement shall become immediately payable.

5.16 Payment Independent of Third Parties

5.16.1 The Client's obligation to pay is not conditional on:

(a) the Client being paid by an End Client or any other third party;
(b) the approval, satisfaction, acceptance, broadcast, publication or commercial success of the Services or Deliverables as judged by an End Client or any third party; or
(c) any complaint, dispute, withholding of payment, cancellation or insolvency of an End Client.

5.16.2 No "pay-when-paid" or "pay-if-paid" arrangement applies. Fraser Hawkshaw Media Limited is not obliged to pursue an End Client before, or instead of, the Client.

5.16.3 Sections 5.4, 5.7, 15.6 and 18.3 apply to the dissatisfaction, cancellation or non-payment of an End Client as if it were that of the Client.

5.16.4 Where Fraser Hawkshaw Media Limited agrees in writing to invoice an End Client directly, the Client remains liable if the End Client has not paid in full by the due date. Fraser Hawkshaw Media Limited may then re-invoice the Client on 7 days' written notice, payable within 14 days.

5.16.5 A dispute between the Client and an End Client does not extend any payment deadline or suspend interest under Section 5.2.

5.17 Credit Checks and Guarantees

5.17.1 Before or after confirming a Booking, Fraser Hawkshaw Media Limited may require any of the following, particularly where the Client is a newly formed company or sole trader, is acting for an End Client, or the total fees exceed an amount Fraser Hawkshaw Media Limited specifies:

(a) credit or company information about the Client;
(b) a Deposit, an increased Deposit, or payment in advance; or
(c) a written guarantee of the Client's obligations, signed personally by a director, owner or other person acceptable to Fraser Hawkshaw Media Limited, in the form Fraser Hawkshaw Media Limited provides.

5.17.2 Where a requirement is made under Section 5.17.1, the Booking is not confirmed until it has been met, and Section 5.12.2 applies. Fraser Hawkshaw Media Limited may suspend work and withhold Deliverables under Section 5.15.1 until it is met.

6. TRAVEL AND EXPENSES

6.1 Unless otherwise stated in the Confirmation Email, the Service fee includes travel within Greater London. Travel outside this area shall be charged in accordance with this Section.

6.2 Vehicle travel shall be charged at £0.45 per mile from Fraser Hawkshaw Media Limited's London base. Public transport shall be charged at cost. Parking, tolls, congestion, and emissions charges shall be charged at cost.

6.3 Where an Event finishes after the last reasonable public transport, or where crew cannot practicably travel with Equipment by public transport, the cost of taxis or vehicle transport shall be charged at cost.

6.4 Where an Event is more than 2 hours' travel from London, or finishes at a time when returning home is not reasonably practicable or safe, reasonable accommodation shall be charged at cost, together with subsistence of £40 per crew member per day.

6.5 Where travel or expenses are quoted as a fixed sum in the Confirmation Email, no further travel charges shall apply, save under Section 23.5.

6.6 All expenses shall be invoiced in accordance with Section 5, with receipts available on request. Section 27 applies in addition to this Section for international shoots.

7. WORKING HOURS, OVERTIME, AND LATE FINISHES

7.1 Unless otherwise stated in the Confirmation Email, the Service fee covers each crew member for up to 8 hours on-site per Event Date, including setup, filming, and pack-down (the "Standard Day").

7.2 Time on-site beyond the Standard Day, or beyond the agreed finish time stated in the Confirmation Email, shall be charged at £50 per crew member per hour or part hour, and invoiced in accordance with Section 5.

7.3 Where the Event overruns, Fraser Hawkshaw Media Limited will use reasonable efforts to continue coverage but is not obligated to do so. Where the Client or its authorised representative asks for coverage to continue beyond the agreed finish time, this shall be treated as an on-site request under Section 31.10 and charged under Section 7.2. Section 9.9 continues to apply to Live Broadcast Services.

7.4 Crew are entitled to reasonable breaks. For Events where crew are on-site for more than 6 hours, the Client shall allow a reasonable meal break. Fraser Hawkshaw Media Limited will schedule breaks to minimise any impact on coverage, and brief gaps in coverage during agreed breaks shall not constitute a failure of service.

7.5 Where an Event finishes after midnight and crew are required on-site again the following day, Fraser Hawkshaw Media Limited may require a minimum rest period of 8 hours before the next call time.

8. DELIVERABLES

8.1 The Deliverables provided shall be as listed in the Confirmation Email.

8.2 Fraser Hawkshaw Media Limited shall use commercially reasonable efforts to provide Deliverables in accordance with agreed specifications.

8.3 Any Deliverables requested beyond the initial scope shall be treated as Extra Deliverables, billed at additional rates, and subject to revised turnaround times.

8.4 All Deliverables are provided for use only as permitted under the licence granted in Section 16.2 and subject to the restrictions in Section 16.3.

8.5 Audio Recording Limitations and Remedies

8.5.1 Fraser Hawkshaw Media Limited shall use reasonable care and industry-standard practices to capture an audio recording of the Event.

8.5.2 Fraser Hawkshaw Media Limited shall not be responsible for any failure to capture usable audio where such failure results from circumstances outside its reasonable control, including but not limited to:

(a) refusal by the venue, promoter, or audio engineer to provide an audio feed;
(b) failure, misconfiguration, or interference within the venue's sound system;
(c) restrictions imposed by the venue or audio engineer on connecting recording equipment;
(d) issues originating from third-party audio equipment or personnel; or
(e) unavailability of feeds, cables, or connections not supplied by Fraser Hawkshaw Media Limited.

8.5.3 Where Fraser Hawkshaw Media Limited fails to capture usable audio due solely to its own error or equipment failure, this shall be acknowledged as a failure of service in respect of audio capture only.

8.5.4 In such circumstances, Fraser Hawkshaw Media Limited's liability shall be limited, at its discretion, to one of the following remedies:

(a) reasonable efforts to repair, enhance, or replace the audio using available recordings; or
(b) a proportionate reduction of the Service fee relating specifically to the audio component of the Services.

8.5.5 Failure to capture usable audio shall not entitle the Client to a full refund, cancellation of the Agreement, or damages beyond the limits set out in Section 17.

8.5.6 For the avoidance of doubt, the remedies set out in Section 8.5.4 shall apply only where the failure to capture usable audio is caused solely by Fraser Hawkshaw Media Limited's own error, equipment failure, or operator negligence in capturing the audio recording. Where a failure to capture usable audio arises from any of the circumstances described in Section 8.5.2 — including restrictions on connecting recording equipment or failures within a venue-provided audio feed or system — the Client shall remain liable for the full Service fee, and no reduction, refund, credit, or other remedy shall be owed by Fraser Hawkshaw Media Limited.

8.6 Fraser Hawkshaw Media Limited shall take reasonable measures to back up all recorded material for the Retention Period specified in Section 12.1. Delivery of final Deliverables may be made via digital download, cloud link, USB drive, or physical media as agreed in the Confirmation Email.

8.7 The Client is responsible for ensuring that any third-party materials provided (including logos, music, or footage) are cleared for use. Fraser Hawkshaw Media Limited shall not be liable for any claims arising from unauthorised use of such materials.

8.8 Fraser Hawkshaw Media Limited shall not be liable for delays or failure in providing Extra Deliverables beyond the scope initially agreed, except as expressly provided in this Agreement.

8.9 Right to Withhold Source and Project Files

8.9.1 Unless expressly agreed in writing, Fraser Hawkshaw Media Limited is under no obligation to provide project files, timelines, presets, edits, or any working files used in the creation of the Deliverables.

8.9.2 Delivery of final Deliverables does not imply transfer of ownership or access to any underlying project files, software projects, or templates.

8.9.3 Any request for such files may incur additional fees and is subject to Fraser Hawkshaw Media Limited's sole discretion.

8.10 Track Selection and Audio Identification

8.10.1 Where the Client wishes to identify specific tracks played during the Event for use in Deliverables, Fraser Hawkshaw Media Limited will provide the Client with a recording of the audio captured during the Event to assist with this process. The Client may review the recording and submit track selections to Fraser Hawkshaw Media Limited by way of timestamps indicating the relevant portions of audio.

8.10.2 The opportunity to submit track selections will be made available to the Client prior to the commencement of post-production. Track selections will not be accepted after editing of the relevant Deliverable has begun, and Fraser Hawkshaw Media Limited shall not be obliged to revisit, re-edit, or amend any completed Deliverable on the basis of track selections submitted after that point. The Client is also referred to Section 18.5, which sets out the limitations on Fraser Hawkshaw Media Limited's ability to capture specific moments during Highlights Coverage. Where a moment has not been captured due to the circumstances described in Section 18.5, Fraser Hawkshaw Media Limited shall not be obliged to fulfil a track selection request in respect of that moment, and no reduction in fees or additional entitlement shall arise as a result.

8.10.3 The number of track selection submissions included within the standard Service fee corresponds to the number of Deliverables specified in the Confirmation Email. Each Deliverable is entitled to one track selection submission only.

8.10.4 Any track selection request that falls outside the scope of Section 8.10.3 will incur an additional charge. This includes:
(a) track selections requested for Deliverables not listed in the Confirmation Email;
(b) more than one track selection submission made in respect of the same Deliverable; and
(c) any track selection request submitted after editing of the relevant Deliverable has commenced, where Fraser Hawkshaw Media Limited agrees to accommodate it at its discretion.
Such additional work will be quoted and invoiced separately and is payable in accordance with Section 5.

8.10.5 Fraser Hawkshaw Media Limited is not responsible for the identification of tracks or the accuracy of any timestamps provided by the Client. Where timestamps are unclear, incomplete, or technically impractical to implement, Fraser Hawkshaw Media Limited will use reasonable efforts to communicate this to the Client, but is not obliged to seek out or identify tracks independently.

8.11 Full Set Capture — Scope and Limitations

8.11.1 Where the Services include Full Set Capture, Fraser Hawkshaw Media Limited will use all reasonable skill and care to record the agreed performance, set, or presentation in its entirety for the duration specified in the Confirmation Email.

8.11.2 Full Set Capture is subject to the following inherent limitations, for which Fraser Hawkshaw Media Limited shall not be liable:

(a) brief interruptions to recording caused by equipment issues, media management, card changes, or battery changes that are required during the set and cannot reasonably be avoided;
(b) any portion of a performance that commences before Fraser Hawkshaw Media Limited has completed setup, where the performer or Client has not allowed sufficient time for setup prior to the agreed start time;
(c) any extension of a performance beyond the duration agreed in the Confirmation Email, unless Fraser Hawkshaw Media Limited has agreed in writing to extend coverage and any applicable additional fees have been agreed;
(d) audio limitations as set out in Section 8.5; and
(e) any interruption caused by factors beyond Fraser Hawkshaw Media Limited's reasonable control, including but not limited to power failure, venue interference, third-party disruption, or Force Majeure Events as defined in Section 1.9.

8.11.3 Fraser Hawkshaw Media Limited shall not be liable for any portion of a performance that is not captured as a result of the circumstances set out in Section 8.11.2, and the Client shall not be entitled to withhold payment, claim a refund, or seek damages on that basis.

8.11.4 Where a technical failure during Full Set Capture is caused solely by Fraser Hawkshaw Media Limited's own equipment malfunction or operator error, Fraser Hawkshaw Media Limited shall acknowledge the failure and, at its discretion, offer one of the following remedies:

(a) reasonable efforts to restore, repair, or recover the affected footage using available recordings; or
(b) a proportionate reduction of the Service fee attributable to the affected portion of the recording only.

8.11.5 The remedies set out in Section 8.11.4 shall represent the full extent of Fraser Hawkshaw Media Limited's liability in respect of any failure to capture during Full Set Capture, and shall not exceed the limits set out in Section 17.

8.11.6 Where the Services include both Full Set Capture and additional Deliverables such as highlights edits or social media clips, each element shall be treated as a separate Deliverable for the purposes of this Agreement. Any failure or limitation affecting the Full Set Capture shall not affect the Client's obligation to pay in full for all other Deliverables delivered in accordance with this Agreement.

8.12 Aspect Ratios and Client Alteration of Deliverables

8.12.1 Where the Confirmation Email specifies delivery of Deliverables in multiple aspect ratios or formats (including but not limited to formats suitable for different social media platforms), Fraser Hawkshaw Media Limited will provide each Deliverable pre-cropped and formatted for its intended platform or use.

8.12.2 The Client is responsible for using the correct pre-formatted version of each Deliverable for its intended platform or purpose, rather than further cropping, resizing, or re-editing a Deliverable provided in a different aspect ratio.

8.12.3 Fraser Hawkshaw Media Limited shall not be liable for any reduction in visual quality, loss of resolution, incorrect framing, or other degradation resulting from the Client further cropping, resizing, compressing, re-encoding, or otherwise altering a Deliverable after delivery.

8.12.4 For the avoidance of doubt, any such alteration by the Client is undertaken entirely at the Client's own risk and discretion, and does not entitle the Client to request a replacement, refund, or additional work from Fraser Hawkshaw Media Limited to correct quality issues arising from the Client's own editing.

8.13 Delivery Links and Watermarking

8.13.1 Where Deliverables are provided by download link, the link will remain active for a minimum of 30 days from the date of delivery. The Client is responsible for downloading and securely storing the Deliverables within that period. Fraser Hawkshaw Media Limited is not obliged to reissue expired links after the Retention Period set out in Section 12.1.

8.13.2 Fraser Hawkshaw Media Limited may provide watermarked or reduced-resolution previews of Deliverables for review purposes. Previews are provided for review only and shall not be published or distributed by the Client.

8.13.3 Where any invoice is overdue, or where the Confirmation Email specifies payment before delivery, Fraser Hawkshaw Media Limited may withhold final, full-resolution Deliverables until cleared payment has been received in full.

8.14 Same-Day Edits and Social Cutdowns

8.14.1 Where specified in the Confirmation Email, Fraser Hawkshaw Media Limited will produce short-form edits for delivery on the Event Date or within the timeframe stated ("Same-Day Edits").

8.14.2 Same-Day Edits are produced under time pressure in a live environment. Delivery times are targets rather than guarantees and depend on factors including on-site internet connectivity, performance timings, and the availability of suitable footage.

8.14.3 Unless otherwise stated in the Confirmation Email, Same-Day Edits include one round of minor text or trim changes only, and the revision rounds set out in Section 10.1 shall not apply. Same-Day Edits may receive a lighter colour grade and audio treatment than other Deliverables.

8.14.4 Where a Same-Day Edit cannot be delivered within the stated timeframe due to circumstances beyond Fraser Hawkshaw Media Limited's reasonable control, it will be delivered as soon as reasonably practicable, and this shall not entitle the Client to any reduction in fees.

8.14.5 Same-Day Edits are treated as separate Deliverables and are charged in addition to any other Deliverables.

9. LIVE BROADCAST AND STREAMING SERVICES

9.1 Definition of Live Broadcast Services

9.1.1 Where specified in the Confirmation Email, "Live Broadcast Services" means the live transmission of audio and/or video content from the Event to an online platform, streaming service, private network, or broadcast destination.

9.2 Professional Standard and Stream Stability Commitment

9.2.1 Fraser Hawkshaw Media Limited will use all reasonable skill, care, and professional diligence to deliver a stable and reliable live broadcast.

9.2.2 Fraser Hawkshaw Media Limited will deploy appropriate professional-grade equipment suitable for the Event environment and will take reasonable steps to minimise interference, including but not limited to:

(a) selecting transmission equipment designed to operate in high-density crowd environments;
(b) mitigating risks of wireless congestion caused by mobile phones and public Wi-Fi usage;
(c) positioning equipment to reduce signal obstruction or interference; and
(d) implementing reasonable backup or redundancy measures where agreed.

9.2.3 Fraser Hawkshaw Media Limited will actively monitor stream health and take prompt corrective action where issues are identified.

9.2.4 Where a prolonged interruption of the live stream (being a significant continuous signal loss materially affecting the broadcast) is caused solely by Fraser Hawkshaw Media Limited's equipment failure, configuration error, or operator negligence, Fraser Hawkshaw Media Limited accepts responsibility for such failure, subject to the limitations set out in Sections 9.11 and 17.

9.3 Third-Party Infrastructure and Transmission Risk

9.3.1 The Client acknowledges that live streaming and broadcast transmission are dependent on third-party infrastructure, including internet service providers, streaming platforms, venue networks, power supply, mobile network carriers, and telecommunications systems.

9.3.2 Fraser Hawkshaw Media Limited does not guarantee uninterrupted, error-free, or continuous transmission where disruption is caused by factors beyond its reasonable control.

9.3.3 Temporary interruptions, buffering, degradation in quality, platform outages, dropped frames, bitrate fluctuations, or stream termination caused by third-party systems shall not constitute breach of contract.

9.4 Internet Connectivity Responsibility

9.4.1 Where the Client or venue provides the internet connection, the Client is solely responsible for ensuring sufficient upload bandwidth, network stability, and unrestricted network access for streaming.

9.4.2 Fraser Hawkshaw Media Limited shall not be liable for stream failure, degradation, or interruption caused by inadequate bandwidth, firewall restrictions, network congestion, or venue network misconfiguration.

9.4.3 Where Fraser Hawkshaw Media Limited provides bonded, cellular, or dedicated internet, performance remains subject to mobile network coverage, signal strength, carrier availability, and telecommunications conditions beyond Fraser Hawkshaw Media Limited's reasonable control. Section 9.12 applies in addition.

9.5 Platform and Third-Party Services

9.5.1 Where the Client selects or provides a streaming platform, Fraser Hawkshaw Media Limited is not responsible for platform outages, account restrictions, copyright claims, automated takedowns, demonetisation, or moderation actions.

9.5.2 The Client is responsible for ensuring account access credentials are accurate and supplied in sufficient time prior to the Event.

9.5.3 Fraser Hawkshaw Media Limited shall not be liable for stream removal, muting, blocking, or copyright enforcement resulting from music, performances, or other third-party content included in the Event.

9.6 Recording of Live Stream

9.6.1 Where agreed in the Confirmation Email, Fraser Hawkshaw Media Limited will record the programme feed of the live stream.

9.6.2 If the live broadcast fails but a local recording is successfully captured, delivery of that recording shall be deemed substantial performance of the Live Broadcast Services, except in cases covered by Section 9.2.4.

9.6.3 If both live transmission and local recording fail solely due to Fraser Hawkshaw Media Limited's equipment malfunction or operator error, liability shall be determined in accordance with Sections 9.11 and 17.

9.7 Monitoring and Intervention

9.7.1 Fraser Hawkshaw Media Limited will use reasonable efforts to monitor stream health during the Event.

9.7.2 Fraser Hawkshaw Media Limited shall not be liable for interruptions that occur without reasonable opportunity for detection or correction.

9.8 Viewer Experience

9.8.1 Fraser Hawkshaw Media Limited is not responsible for individual viewer connectivity issues, device compatibility problems, playback errors, geographic restrictions, or user-end technical limitations.

9.8.2 Viewer-side buffering, lag, resolution changes, or device limitations shall not constitute service failure.

9.9 Event Schedule Overruns

9.9.1 Where the Event starts late, overruns, or extends beyond the agreed broadcast window, Fraser Hawkshaw Media Limited reserves the right to:

(a) charge additional fees for extended streaming time; or
(b) conclude the broadcast at the originally agreed end time, unless otherwise agreed in writing or on-site.

9.10 Redundancy and Backup Systems

9.10.1 Unless explicitly stated in the Confirmation Email, Fraser Hawkshaw Media Limited does not guarantee full hardware redundancy (including duplicate encoders, duplicate power supplies, or duplicate internet connections).

9.10.2 Any redundancy systems provided reduce risk but do not eliminate the possibility of technical failure.

9.11 Limitation of Broadcast Liability

9.11.1 Without limiting Section 17, liability specifically relating to Live Broadcast Services shall be limited to the proportion of the total Service fee attributable to the live streaming component only.

9.11.2 The Client acknowledges that live transmission involves inherent technical risk and agrees that Fraser Hawkshaw Media Limited shall not be liable for indirect, consequential, revenue-based, or reputational losses arising from interruption, degradation, or failure of a live broadcast.

9.11.3 Total liability for Live Broadcast Services shall not exceed the total fees paid or payable by the Client under the relevant Booking.

9.12 Bonded Internet and Satellite Connectivity

9.12.1 Where specified in the Confirmation Email, Fraser Hawkshaw Media Limited will provide its own on-site internet connectivity using bonded cellular and/or satellite systems ("Provided Connectivity"). Provided Connectivity is a separately priced element of the Services and may be used for Live Broadcast Services, Same-Day Edits, file transfer, or other purposes agreed in the Confirmation Email.

9.12.2 The performance of Provided Connectivity depends on factors beyond Fraser Hawkshaw Media Limited's reasonable control, including mobile network coverage and congestion (particularly in high-density crowds), satellite availability, a clear view of the sky, weather conditions, and outages and restrictions imposed by network or satellite providers. Any bandwidth figures given by Fraser Hawkshaw Media Limited are estimates only and are not guaranteed.

9.12.3 The Client shall provide, or ensure the Venue provides:

(a) a safe position for antennas and satellite equipment with a clear, unobstructed view of the sky, including roof or outdoor access where required;
(b) permission from the Venue to mount and run cables to such equipment; and
(c) power in accordance with Section 4.9.

The Client shall inform Fraser Hawkshaw Media Limited in advance of any known restrictions on wireless, cellular, or satellite equipment at the Venue.

9.12.4 Where reasonably practicable, Fraser Hawkshaw Media Limited may carry out a connectivity test or site survey before the Event, which may be charged separately. Where the Client declines a recommended test or survey, Fraser Hawkshaw Media Limited shall not be liable for any connectivity issue that such a test would reasonably have identified.

9.12.5 Provided Connectivity is supplied for the purposes of the Services only. The Client and third parties shall not connect devices to it without Fraser Hawkshaw Media Limited's prior consent. Where Provided Connectivity is made available for the Client's other uses by agreement, the Client shall be responsible for all such use and shall not use it for any unlawful purpose.

9.12.6 Where Provided Connectivity fails due to the factors in Section 9.12.2, Section 9.3 shall apply. Where it fails solely due to Fraser Hawkshaw Media Limited's own equipment failure or configuration error, Sections 9.2.4 and 9.11 shall apply, and liability shall be limited to the fee attributable to the Provided Connectivity element.

9.12.7 Antennas, satellite equipment, routers, and associated cabling are Equipment for the purposes of Section 19, and Section 19.6 applies to their positioning.

9.12.8 For Events outside the United Kingdom, the use of cellular or satellite equipment may be restricted by local law or network availability, and Section 27.2.1(d) shall apply. Any roaming, additional data, or local SIM costs shall be invoiced to the Client at cost.

9.13 Masts, Rigging, and Cable Runs

9.13.1 Provided Connectivity may require Fraser Hawkshaw Media Limited to erect a temporary mast, tripod, or ballasted stand, and to run cables between antennas or satellite equipment and its broadcast, streaming, or production position ("Connectivity Rigging").

9.13.2 The Client shall:

(a) provide a suitable, level location for any mast, with sufficient space for ballast or guy lines, clear of overhead power lines and, where practicable, away from public walkways and crowd areas;
(b) obtain all permissions required from the Venue, landowner, event organiser, or local authority for the mast and cable routes;
(c) agree cable routes with Fraser Hawkshaw Media Limited in advance, and provide or permit the use of cable ramps, crossovers, trays, or overhead routes wherever cables cross walkways, vehicle routes, or crowd areas; and
(d) allow sufficient time at load-in for Connectivity Rigging before the Event begins, and at load-out for its removal.

9.13.3 Fraser Hawkshaw Media Limited will install Connectivity Rigging with reasonable skill and care, in line with manufacturer guidance and reasonable industry practice, including ballasting or securing masts and protecting cables it has installed. A risk assessment for Connectivity Rigging is available on request.

9.13.4 Fraser Hawkshaw Media Limited may decline to erect, or may lower or reposition, any mast where wind, lightning, or other conditions make it unsafe, or where no safe location or cable route is available. Any resulting loss of or reduction in connectivity shall not constitute a failure of service, and Sections 9.12.6 and 19.9 shall apply.

9.13.5 The Client shall ensure that masts and cable runs are not moved, climbed, driven over, disconnected, or otherwise interfered with by attendees, staff, contractors, or other third parties. Section 19.4 applies to any resulting damage, and Fraser Hawkshaw Media Limited shall not be liable for any loss of connectivity caused by such interference.

9.13.6 Fraser Hawkshaw Media Limited will not drill into or make permanent fixings to Venue structures without the Venue's prior consent. Section 17.7 applies to minor marks caused by the normal installation and removal of Connectivity Rigging.

9.13.7 Where a mast or cable run would be placed on or across a public highway or land outside the Venue boundary, the Client is responsible for obtaining any required permits or licences. Fraser Hawkshaw Media Limited will not erect equipment in such locations without them.

9.13.8 Where Connectivity Rigging requires additional crew, equipment (including extra cabling, cable protection, or ballast), or setup time beyond that quoted, including because of the location or cable route made available on the day, this shall be charged as an on-site scope change under Section 31.10.

10. CHANGES AND EDITS

10.1 The Client is entitled to two (2) rounds of reasonable changes or edits to the Deliverables, provided such requests fall within the original scope of Services.

10.2 A "round of changes" means a single, consolidated list of requested amendments submitted at one time. Multiple or piecemeal requests shall be treated as additional rounds.

10.3 Any changes or edits requested beyond two rounds shall be treated as additional work and charged at Fraser Hawkshaw Media Limited's prevailing hourly or project rates. Current rates are available on request prior to any additional work being carried out.

10.4 Changes requested more than 30 days after delivery of the Deliverables may incur additional charges regardless of whether the included rounds have been used.

10.5 Fraser Hawkshaw Media Limited reserves the right to decline requests that would require disproportionate time or resources relative to the original scope of Services.

10.6 Deemed Acceptance

10.6.1 The Client shall review Deliverables promptly upon delivery.

10.6.2 If no request for revisions is received within 30 days of delivery, the Deliverables shall be deemed accepted in full.

10.6.3 After acceptance, any further changes shall be treated as additional work and charged accordingly.

10.7 Right to Remedy Before Other Action

10.7.1 Before pursuing any refund, payment dispute, chargeback, negative public review, complaint to a third-party platform, or legal action in connection with an alleged defect or deficiency in the Services or Deliverables, the Client shall first give Fraser Hawkshaw Media Limited written notice of the specific issue and a reasonable opportunity (being not less than 14 days, unless otherwise agreed) to investigate and remedy it in accordance with this Section 10.

10.7.2 Where the Client fails to provide such notice and opportunity to remedy before taking any action described in Section 10.7.1, Fraser Hawkshaw Media Limited reserves the right to treat this as a breach of this Agreement and to pursue any remedies available under Section 31.12 and applicable law.

11. POST-EVENT EDITING SERVICES

11.1 Where the Client asks Fraser Hawkshaw Media Limited, after the Event, to edit footage that was not included as a Deliverable in the original Confirmation Email (including multi-camera edits of full sets, live stream recordings, or isolated camera recordings) ("Post-Event Editing"), this shall be treated as a new and separate service. It is not a revision under Section 10 or an Extra Deliverable under the original Booking.

11.2 Post-Event Editing shall be quoted separately and, once accepted, shall form a new Booking subject to these Terms and confirmed by its own Confirmation Email. A Deposit may be required. Turnaround times shall run from the date of that Confirmation Email, not the original Event Date.

11.3 Post-Event Editing is subject to the footage still being retained in accordance with Section 12. Where the request is made after the Retention Period, Section 12.5.3 applies. Clients who expect to request later edits are encouraged to arrange extended storage under Section 12.5.2.

11.4 Post-Event Editing is limited to the footage recorded on the day. Unless the original Confirmation Email specified isolated recordings of each camera, only the recorded programme feed may be available, and a full multi-camera re-edit may not be possible. Fraser Hawkshaw Media Limited will confirm what footage is available before quoting.

11.5 Post-Event Editing shall be charged at Fraser Hawkshaw Media Limited's prevailing editing rates, having regard to factors including set length, the number of camera angles, and the complexity of audio and video synchronisation. Where the Client supplies additional footage captured by a third party, Section 4.7 shall apply.

11.6 Section 10 shall apply to Post-Event Editing Deliverables, with the revision periods running from their delivery date.

11.7 Post-Event Editing Deliverables are licensed under Section 16.2, conditional on payment of the Post-Event Editing invoice in accordance with Section 5.6.

11.8 Where the Client cancels Post-Event Editing after it has been confirmed, the Client shall pay for all work carried out up to the date of cancellation at Fraser Hawkshaw Media Limited's prevailing rates, and any Deposit paid shall be credited against that amount. Section 15 shall not apply to Post-Event Editing.

11.9 As an alternative to Post-Event Editing, the Client may request delivery of raw or isolated footage under Section 12.3, subject to the applicable transfer fee. Section 8.9 continues to apply to project files.

12. DATA RETENTION AND BACKUP

12.1 Fraser Hawkshaw Media Limited retains raw footage for a period of 30 days following delivery of the Deliverables, or until the Deliverables are accepted under Section 10.6, whichever is later (the "Retention Period"). After this period, Fraser Hawkshaw Media Limited is under no obligation to retain raw footage unless extended storage has been agreed under Section 12.5.

12.2 Fraser Hawkshaw Media Limited shall not delete raw footage before the Deliverables have been accepted or deemed accepted under Section 10.6. After that point, Fraser Hawkshaw Media Limited may delete raw footage before the end of the Retention Period where storage capacity is required, provided it gives the Client at least 7 days' written notice so that the Client may request delivery of the footage under Section 12.3. The Client is encouraged to request delivery of any footage they wish to keep as early as possible following the Event.

12.3 Transfer of raw footage to the Client, beyond standard delivery of final Deliverables, may incur an additional fee and is subject to the terms of this Section.

12.4 Physical Delivery of Footage

12.4.1 Where the Client requests delivery of raw footage or Deliverables via SSD or other physical storage media, this shall incur an additional fee for the transfer and preparation of footage in accordance with Section 5.

12.4.2 The cost of the SSD or physical storage media required for delivery shall be borne entirely by the Client. The Client may:

(a) provide their own SSD or storage media and cover all associated postage and packaging costs to Fraser Hawkshaw Media Limited;
(b) request that Fraser Hawkshaw Media Limited sources and purchases a suitable SSD on their behalf, the cost of which shall be invoiced to the Client in addition to any transfer fees; or
(c) borrow Loaned Media from Fraser Hawkshaw Media Limited, subject to Section 12.6.

12.4.3 Where Fraser Hawkshaw Media Limited sources a storage device on the Client's behalf, it will recommend a suitable device based on the volume of footage to be delivered and obtain the Client's approval before purchase.

12.4.4 All postage, packaging, and shipping costs associated with physical delivery of storage media shall be borne by the Client, regardless of whether the media was provided by the Client or sourced by Fraser Hawkshaw Media Limited.

12.4.5 Fraser Hawkshaw Media Limited shall take reasonable care in packaging physical media for dispatch but shall not be liable for loss or damage to media or footage once it has been handed to a third-party courier or postal service. The Client is advised to ensure appropriate insurance is in place for high-value shipments.

12.5 Extended Storage and Later Edits

12.5.1 Final Deliverables are provided in the agreed formats. Fraser Hawkshaw Media Limited is not obliged to store raw footage or Deliverables beyond the Retention Period unless extended storage has been agreed in writing.

12.5.2 The Client may request extended storage of raw footage beyond the Retention Period. This shall be subject to an additional fee, quoted on request and payable in accordance with Section 5.

12.5.3 Where the Client requests further editing or new Deliverables after the Retention Period has ended, Fraser Hawkshaw Media Limited will accommodate the request where the footage remains available. Such work shall be quoted and invoiced separately. Fraser Hawkshaw Media Limited shall have no liability where footage is no longer available after the Retention Period. Section 11 applies to Post-Event Editing.

12.6 Loaned Storage Media

12.6.1 Where Fraser Hawkshaw Media Limited loans an SSD or other storage media to the Client ("Loaned Media"), the Loaned Media remains its property at all times and shall be treated as Equipment for the purposes of Section 19.3.

12.6.2 The Client shall return the Loaned Media in good working order, at the Client's own cost, within 7 days of receipt or by any other date stated in the Confirmation Email (the "Return Date").

12.6.3 If the Loaned Media is not returned by the Return Date, a hire charge of £10 per day shall apply until it is returned. Hire charges shall not exceed the replacement cost of the Loaned Media.

12.6.4 If the Loaned Media is not returned within 30 days of the Return Date, or is returned damaged or faulty, Fraser Hawkshaw Media Limited may invoice its replacement cost, being the value stated in the Confirmation Email or, where no value is stated, the reasonable cost of an equivalent replacement device, together with any hire charges accrued, payable in accordance with Section 5. No further hire charges will accrue once the replacement cost has been invoiced.

12.6.5 The Client is responsible for loss or damage in return transit and is advised to use tracked, insured delivery.

12.6.6 The Client shall back up all footage before return. Fraser Hawkshaw Media Limited may wipe returned media and has no obligation to keep its contents.

13. TURNAROUND TIMES AND RUSH REQUESTS

13.1 Turnaround times for Deliverables are provided in the Confirmation Email.

13.2 Fraser Hawkshaw Media Limited shall make commercially reasonable efforts to adhere to stated turnaround times, but timeframes are not guaranteed.

13.3 Fraser Hawkshaw Media Limited shall not be liable for delays caused by Force Majeure Events, equipment failure, or circumstances beyond Fraser Hawkshaw Media Limited's control.

13.4 Client Review and Approval Delays

13.4.1 The Client shall provide timely feedback, approvals, and information required for Fraser Hawkshaw Media Limited to perform Services or deliver revisions.

13.4.2 Any delay in providing feedback or approvals shall automatically extend all turnaround times, deadlines, or delivery schedules by a period equal to the length of the delay.

13.4.3 Fraser Hawkshaw Media Limited shall not be liable for missed deadlines, late delivery, or any consequential effects arising from delayed Client responses.

13.5 Rush Requests

13.5.1 If the Client requests an accelerated turnaround or rush delivery, additional fees may apply. Such fees will be communicated to the Client prior to the work being carried out and will be invoiced separately and payable under the terms of Section 5.

13.5.2 Fraser Hawkshaw Media Limited shall not be liable for delays outside of its reasonable control, including where a rush request cannot be fulfilled due to existing workload or operational constraints. Inability to accommodate a rush request shall not constitute a failure of service.

14. CANCELLATION PROCEDURE

14.1 Cancellation of Services by the Client must be provided in writing (email being sufficient).

14.2 Any request to reschedule the Event within 48 hours of the Event Date shall be treated as a cancellation for the purposes of these Terms, unless Fraser Hawkshaw Media Limited agrees otherwise in writing.

14.3 Fraser Hawkshaw Media Limited may, at its sole discretion, agree to reschedule the Services to a new date, subject to availability, any additional costs incurred, and Section 14.6.

14.4 Fraser Hawkshaw Media Limited reserves the right to cancel or suspend Services where necessary due to safety concerns, breach of these Terms, or unforeseen circumstances beyond its reasonable control.

14.5 Where Fraser Hawkshaw Media Limited cancels the Services under Section 14.4 due to safety concerns or circumstances beyond its reasonable control, the Client shall be entitled to a refund of any prepayments made in respect of the Services not yet performed, in accordance with Section 5.12.3. Where cancellation arises from the Client's breach of these Terms, no refund shall be due and Section 31.12 shall apply.

14.6 Postponement by the Client

14.6.1 Where the Client asks in writing to postpone the Event and Fraser Hawkshaw Media Limited agrees a new date within 6 months of the original Event Date, the Deposit transfers to the new date and no cancellation charge applies under Section 15, provided the request is made more than 7 days before the original Event Date.

14.6.2 A request made 7 days or less before the original Event Date is a cancellation and Section 15 applies, unless Fraser Hawkshaw Media Limited agrees otherwise in writing. Section 14.2 continues to apply to requests made within 48 hours of the Event Date.

14.6.3 The Client shall reimburse non-refundable costs already incurred or committed by Fraser Hawkshaw Media Limited because of the postponement, and the fee may be revised for the new date under Section 2.6.4.

14.6.4 Each Booking may be postponed once. A further request to postpone is a cancellation, and Section 15 applies by reference to the notice given before the then-current Event Date.

14.6.5 If no new date is agreed within the 6 months, or the Event does not take place within that period, the Booking is treated as cancelled when the period ends, and Section 15 applies as though the Client had given notice on the date of the original postponement request.

14.6.6 Where the Event is postponed (rather than cancelled) by an End Client or third-party organiser and Fraser Hawkshaw Media Limited agrees a new date, Section 14.6 applies as if the Client had asked for the postponement. Section 15.6.1 applies if no new date is agreed.

15. CANCELLATION CHARGES

15.1 If the Client cancels the Services, the following cancellation charges shall apply based on the notice period provided prior to the Event Date:

(a) More than 7 days' notice: any Deposit paid shall be retained. No further cancellation charge shall apply, save that the Client shall reimburse any non-refundable costs already incurred or committed to by Fraser Hawkshaw Media Limited in connection with the Services (including but not limited to travel, accommodation, equipment hire, or third-party bookings) to the extent that such costs exceed the Deposit.
(b) Between 7 days and 48 hours' notice: 50% of the total Service fee shall be payable, in addition to any non-refundable costs already incurred or committed to by Fraser Hawkshaw Media Limited to the extent those costs are not already covered by the amount payable under this paragraph.
(c) Less than 48 hours' notice: 100% of the total Service fee shall be payable, in addition to any non-refundable costs already incurred or committed to by Fraser Hawkshaw Media Limited to the extent those costs are not already covered by the amount payable under this paragraph.

Any Deposit paid shall be credited against the charges payable under paragraphs (b) and (c).

15.2 For the purposes of this Section, notice of cancellation is deemed given at the time Fraser Hawkshaw Media Limited receives written notification in accordance with Section 14.1. Cancellation charges shall be invoiced immediately upon receipt of such notification and shall remain payable in accordance with Section 5.

15.3 Section 14.2 applies to any request to reschedule the Event within 48 hours of the Event Date.

15.4 Any decision to waive or reduce cancellation charges in the event of rescheduling shall be entirely at the discretion of Fraser Hawkshaw Media Limited and must be confirmed in writing.

15.5 The Client shall remain liable for cancellation charges even where cancellation arises from circumstances beyond the Client's control, including adverse weather, low ticket sales, licensing issues, or the withdrawal of a performer, except where a Force Majeure Event prevents Fraser Hawkshaw Media Limited itself from performing the Services, in which case Section 22 shall apply.

15.6 Cancellation or Material Change by Third-Party Event Organiser

15.6.1 Subject to Section 14.6.6, where the Event is organised, promoted, or hosted by a party other than the Client (including an End Client, and including but not limited to a promoter, venue, or festival organiser), and that third party cancels, postpones, materially alters, or restricts the Event or the Services in any way, the Client shall remain liable for the Service fee and any applicable cancellation charges under this Section 15, as if the cancellation, postponement, or material alteration had been made by the Client.

15.6.2 Fraser Hawkshaw Media Limited shall not be liable for any inability to perform the Services, or any reduction in the scope of Deliverables, arising from the actions, decisions, or restrictions imposed by a third-party organiser, promoter, or venue in connection with the Event.

15.6.3 The Client is responsible for managing its own contractual relationship with any third-party organiser or promoter, including recovering any losses the Client may suffer as a result of that party's actions. Nothing in this Agreement creates any obligation on Fraser Hawkshaw Media Limited to pursue, negotiate with, or seek recovery from any third-party organiser or promoter on the Client's behalf.

16. INTELLECTUAL PROPERTY

16.1 All intellectual property rights, including copyrights, in any Deliverables remain the property of Fraser Hawkshaw Media Limited unless explicitly assigned in writing.

16.2 Licence Grant

Subject to full payment in accordance with Section 5.6, the Client is granted a non-exclusive, perpetual, worldwide licence to use the Deliverables for the Client's own promotional, marketing, and internal business purposes, including use on websites, social media platforms, and direct distribution related to the Client's activities. This includes paid promotion of the Deliverables on social media and online platforms (such as boosted or sponsored posts and online advertising) for the Client's own events, brand or services. Posting or paying to promote Deliverables on a platform does not breach Section 16.3(b). It does not include broadcast or cinema advertising, or any use restricted by Section 16.3, unless agreed in writing with Fraser Hawkshaw Media Limited.

16.2A End Client Licence

Where an End Client is named in the Confirmation Email, the licence in Section 16.2 extends to that End Client for its own promotional, marketing and internal business purposes, subject to the same conditions, payment requirements and restrictions (including Sections 5.6, 16.3 and 16.15). It does not extend to any further sub-licence. The Client is responsible for the End Client's compliance.

16.3 Restricted Uses

The Client shall not, without prior written consent from Fraser Hawkshaw Media Limited:

(a) resell, sublicense, or distribute the Deliverables to third parties for commercial gain;
(b) license the Deliverables to broadcasters, streaming platforms, or third-party media outlets; or
(c) materially alter, distort, or misrepresent the Deliverables in a way that damages the reputation of Fraser Hawkshaw Media Limited.

16.4 The Client agrees that Fraser Hawkshaw Media Limited may use Deliverables or portions thereof in its portfolio, marketing materials, or social media after 30 days from delivery, giving the Client reasonable time to share or use the videos first.

16.4A Fraser Hawkshaw Media Limited may capture and use behind-the-scenes photographs and footage of its own crew, Equipment, and setup at the Event for its portfolio and marketing, subject to Section 29. Such content shall not feature unreleased performances or embargoed material.

16.5 If the Client has already publicly shared the Deliverables, Fraser Hawkshaw Media Limited may request permission to use them in its portfolio or marketing before the 30-day period. The Client may approve or decline in writing. Any use will credit the Client and not misrepresent their content.

16.6 Public Sharing by Client

If the Client posts Deliverables publicly on social media or other platforms, Fraser Hawkshaw Media Limited may assume that such posting constitutes implied permission for portfolio or marketing use, unless otherwise communicated in writing. This shall not apply where the Client has expressly prohibited such use in writing prior to delivery.

16.7 Purchase of Full Intellectual Property Rights

16.7.1 The licence granted under Section 16.2 does not constitute an assignment of intellectual property rights. All copyright and intellectual property in the Deliverables remains the property of Fraser Hawkshaw Media Limited unless explicitly transferred in writing.

16.7.2 Where the Client wishes to acquire full intellectual property rights and copyright ownership in the Deliverables, this may be negotiated separately and must be agreed and confirmed in writing by Fraser Hawkshaw Media Limited.

16.7.3 The fee for a full assignment of intellectual property rights shall be determined entirely at the discretion of Fraser Hawkshaw Media Limited and will be quoted on a per-project basis. Such fee shall be in addition to the standard Service fee and any other charges payable under this Agreement.

16.7.4 No assignment of intellectual property rights shall take effect until the full assignment fee and all other outstanding amounts due under this Agreement have been received in full by Fraser Hawkshaw Media Limited.

16.7.5 Any assignment of rights under this Section shall be limited to the specific Deliverables agreed in writing and shall not extend to any underlying project files, raw footage, presets, or working materials unless these are explicitly included in the written assignment agreement.

16.8 Credit and Attribution

16.8.1 Fraser Hawkshaw Media Limited invests significant skill, time, and expertise in the production of all Deliverables. The Client is encouraged to credit Fraser Hawkshaw Media Limited when publishing or distributing Deliverables publicly, in recognition of this contribution.

16.8.2 Unless otherwise agreed in writing, credit and attribution are not a mandatory condition of the licence granted under Section 16.2. However, the Client's cooperation with the provisions of this Section is considered an important part of the professional relationship between the parties and is strongly encouraged.

16.8.3 Where the Client publishes or distributes Deliverables publicly — including but not limited to on social media platforms, websites, press releases, broadcast channels, or any other public-facing medium — Fraser Hawkshaw Media Limited respectfully requests that credit is given as: @fraserhawkshaw

16.8.4 Where the nature of the publication allows, Fraser Hawkshaw Media Limited requests that this credit is placed prominently in the caption, description, or credits section of the published content rather than buried within a list of credits or omitted entirely.

16.8.5 The Client is encouraged to tag @fraserhawkshaw directly when publishing Deliverables on social media platforms, to allow Fraser Hawkshaw Media Limited to engage with and reshare the content where appropriate.

16.9 Contracted Credit

16.9.1 Where credit and attribution are agreed as a contractual requirement — for example where Fraser Hawkshaw Media Limited has offered a reduced fee in part consideration for guaranteed credit — this shall be confirmed in writing in the Confirmation Email and shall form a binding obligation on the Client.

16.9.2 Where a contracted credit obligation exists and the Client fails to provide the agreed credit, Fraser Hawkshaw Media Limited reserves the right to invoice the Client for the value of the credit as agreed at the time of Booking, and to treat the omission as a breach of this Agreement entitling Fraser Hawkshaw Media Limited to the remedies available under Section 31.12 and applicable law.

16.10 Misattribution and Misrepresentation

16.10.1 The Client shall not attribute the Deliverables to any person or entity other than Fraser Hawkshaw Media Limited without prior written consent. This includes but is not limited to crediting another videographer, production company, or individual for work produced by Fraser Hawkshaw Media Limited.

16.10.2 Where the Client materially misattributes the Deliverables or presents them as the work of another party, Fraser Hawkshaw Media Limited reserves the right to treat this as a breach of this Agreement and to pursue any remedies available under this Agreement or applicable law.

16.11 Moral Rights and Treatment of Deliverables

16.11.1 To the extent that Fraser Hawkshaw, or any other individual author of the Deliverables, holds moral rights under the Copyright, Designs and Patents Act 1988, those rights are hereby asserted, including the right to be identified as the author of the work and the right to object to derogatory treatment of the work.

16.11.2 Independently of any moral rights, the Client shall not edit, overlay, or otherwise alter the Deliverables in a manner that distorts or misrepresents the work, or that is prejudicial to the honour or reputation of Fraser Hawkshaw Media Limited or its personnel.

16.11.3 For the avoidance of doubt, cropping, resizing, reformatting, trimming for length, or adding captions, logos, or text for the purposes permitted under Section 16.2 shall not breach this Section, provided such treatment does not distort or misrepresent the work. Any such alteration is undertaken at the Client's own risk in accordance with Section 8.12.

16.11.4 Any waiver of rights under this Section must be given by express written agreement signed by Fraser Hawkshaw.

16.12 Music and Third-Party Content in Deliverables

16.12.1 The Client acknowledges that Deliverables may contain music, performances, visuals, or other content owned by third parties, including artists, record labels, and music publishers. The licence granted under Section 16.2 covers only Fraser Hawkshaw Media Limited's rights in the Deliverables and does not grant any rights in such third-party content.

16.12.2 The Client is solely responsible for obtaining any licences or clearances required to publish or distribute Deliverables containing third-party content, including synchronisation licences where required.

16.12.3 Fraser Hawkshaw Media Limited shall not be liable for any copyright claims, muting, takedowns, blocking, demonetisation, or account restrictions applied to the Client's published content. Any re-editing requested by the Client to remove or replace third-party content shall be charged as additional work. Section 20.3 applies to any resulting claims.

16.13 Use of Client Name and Logo

16.13.1 The Client agrees that Fraser Hawkshaw Media Limited may refer to the Client by name, display the Client's logo, and name the Event in its client lists, website, pitch materials, and social media as a factual reference to work carried out.

16.13.2 Such use shall not imply any endorsement by the Client. The Client's logo will not be altered other than for resizing.

16.13.3 The Client may withdraw permission under this Section at any time by written notice. Fraser Hawkshaw Media Limited will then stop any new use within a reasonable time. This Section is subject to any confidentiality or embargo agreed under Section 29.

16.14 Sharing with Performers

16.14.1 The Client may share Deliverables with performers, artists, or their management who feature in them, for those parties' own promotional use, free of charge, on their websites and social media, provided that Fraser Hawkshaw Media Limited is credited in accordance with Section 16.8 and the Deliverables are not altered in breach of Section 16.11.

16.14.2 Any other use by such parties, including broadcast, sale, or inclusion in commercial releases, requires a separate licence from Fraser Hawkshaw Media Limited.

16.15 Unauthorised Distribution and Resale

16.15.1 The Client shall not charge any fee, recover any costs, or receive any payment, contribution, or benefit in kind from any performer, artist, label, management company, or other third party in return for providing access to the Deliverables or any part of them, however such an arrangement is described.

16.15.2 Where the Client does so without Fraser Hawkshaw Media Limited's prior written consent, the Client shall (a) account for and pay to Fraser Hawkshaw Media Limited all sums and the value of any benefits received; and (b) pay a licence fee equal to 100% of the Service fee for the relevant Booking, being Fraser Hawkshaw Media Limited's standard fee for a third-party commercial licence that the Client would otherwise have been required to obtain. The licence under Section 16.2 shall be suspended in accordance with Section 5.6.3 until these sums are paid.

16.15.2A The Client acknowledges that Fraser Hawkshaw Media Limited has a legitimate interest in protecting the commercial value of the Deliverables and its ability to license them directly to performers, artists and other third parties. The sums in Section 16.15.2 reflect that interest and Fraser Hawkshaw Media Limited's standard licence fee. They are a proportionate measure of that interest and not a penalty.

16.15.3 On written request, the Client shall within 7 days confirm in writing whether the Deliverables have been provided to any third party, to whom, and on what terms, and shall supply copies of any related correspondence or invoices. Failure to do so shall be a breach of this Agreement.

16.15.4 Deliverables may contain visible or embedded identifiers, including metadata, watermarks, or unique file versions. The Client shall not remove, alter, or obscure them. The presence of such an identifier in content published by a third party shall be treated as evidence that the content originated from the Client's copy.

16.15.5 No third party who receives Deliverables from the Client obtains any licence from Fraser Hawkshaw Media Limited, which may enforce its copyright directly against that party, including by requiring removal of the content from any platform. The Client shall refer any third party wishing to use the Deliverables for their own purposes to Fraser Hawkshaw Media Limited, which offers such licences directly.

16.15.6 The Client shall reimburse Fraser Hawkshaw Media Limited for all reasonable costs of investigating and enforcing this Section, including legal costs and the cost of takedown requests.

17. LIABILITY

17.0 Statutory Rights and Non-Excludable Liability

Nothing in this Agreement shall limit or exclude liability for:

(a) death or personal injury caused by negligence;
(b) fraud or fraudulent misrepresentation; or
(c) any liability which cannot be limited or excluded under applicable law.

All other limitations of liability in this Agreement shall apply to the fullest extent permitted by law.

17.1 Fraser Hawkshaw Media Limited shall exercise reasonable care in performing Services.

17.2 In the unlikely event of camera failure, data corruption, or footage loss, Fraser Hawkshaw Media Limited's total liability shall be limited to the total fees paid or payable by the Client under the relevant Booking.

17.3 The Client acknowledges the inherent risks in digital recording, including equipment malfunction or data loss, and agrees that Fraser Hawkshaw Media Limited shall not be liable for such risks except to the extent expressly provided in this Agreement.

17.4 Without limiting the other provisions of this Section 17, Fraser Hawkshaw Media Limited shall not be liable for any indirect, consequential, special, or economic losses, including but not limited to lost profits, loss of business opportunity, loss of reputation, or any damages arising from event cancellation, poor performance, or client dissatisfaction.

17.5 Acknowledgment of Risk: The Client acknowledges that filming events involves inherent risks, including, but not limited to, equipment failure, data loss, incomplete footage, environmental conditions, or unforeseen disruptions. The Client agrees that Fraser Hawkshaw Media Limited shall not be held liable for any such risks beyond the limits expressly set out in this Section 17.

17.6 Fraser Hawkshaw Media Limited shall not be liable for any consequences arising from the Client's publication, broadcast, or commercial use of the Deliverables, including loss of revenue, reputational harm, or other damages.

17.7 Fraser Hawkshaw Media Limited shall not be liable for minor damage to the Venue, its fixtures, or property belonging to the Client or third parties (e.g., scuffing or minor wear) caused by the normal setup, use, or removal of Equipment on-site, unless caused by Fraser Hawkshaw Media Limited's negligence.

17.8 No General Refunds: Except where explicitly stated in this Agreement, or where required under applicable law, the Client shall not be entitled to any refund of fees once Services have been performed in accordance with this Agreement.

17.9 Where Fraser Hawkshaw Media Limited is unable to perform the Services due to a Force Majeure Event, any refund shall be made in accordance with Section 22.2.

17.10 Time Limit for Claims

17.10.1 Any claim arising out of or in connection with this Agreement, whether in contract, tort (including negligence), or otherwise, must be notified to Fraser Hawkshaw Media Limited in writing within 3 months of the Event Date, or within 3 months of delivery of the relevant Deliverables, whichever is later.

17.10.2 Any claim not notified within the period set out in Section 17.10.1 shall be deemed waived and time-barred, and the Client shall have no further right of action in respect of that claim, save where such a time limit cannot lawfully be imposed under applicable law.

17.10.3 Nothing in this Section affects any statutory rights of the Client which cannot lawfully be excluded or restricted, including under the Consumer Rights Act 2015 where applicable.

17.11 Fraser Hawkshaw Media Limited's total aggregate liability arising out of or in connection with this Agreement, whether in contract, tort (including negligence), or otherwise, shall not exceed the total fees paid or payable by the Client under the relevant Booking, subject to Section 17.0.

18. PERFORMANCE, LIGHTING, AND AUDIENCE CONDITIONS

18.1 The Client acknowledges that the quality, style, and perceived value of the Deliverables may be affected by factors beyond the reasonable control of Fraser Hawkshaw Media Limited, including but not limited to lighting conditions, sound quality, venue layout, performer performance, audience size, and audience engagement.

18.2 Fraser Hawkshaw Media Limited does not guarantee the artistic, commercial, or promotional effectiveness of the Deliverables, nor any particular reaction or outcome resulting from the performance, crowd response, or event atmosphere.

18.3 The Client agrees that dissatisfaction of the Client or any End Client arising from poor lighting, poor performance, low audience energy, or similar event-related factors shall not constitute grounds for non-payment, partial payment, refusal to use the Deliverables, or a refund.

18.4 Fees remain payable in full where the Services have been provided in accordance with this Agreement, regardless of whether the Client chooses to use the Deliverables or not.

18.5 Capture of Specific Moments

Where Highlights Coverage is provided, Fraser Hawkshaw Media Limited shall not be liable for failure to capture specific moments unless such moments are:

(a) expressly requested by the Client in writing prior to the Event; or
(b) clearly and reasonably signalled to Fraser Hawkshaw Media Limited during the Event in sufficient time for capture.

Absent such prior instruction or signalling, the selection of recorded moments shall be at the reasonable discretion of Fraser Hawkshaw Media Limited.

18.6 The Client acknowledges that the Services are performed in a live event environment and are subject to real-time conditions that cannot be fully controlled, predicted, or replicated after the Event.

18.7 Full Set Capture — Performance Conditions

18.7.1 The Client acknowledges that the quality, completeness, and usability of Full Set Capture recordings may be affected by factors beyond the reasonable control of Fraser Hawkshaw Media Limited, including but not limited to:

(a) the performance starting earlier or later than the agreed or expected time;
(b) the performance running shorter or longer than the agreed duration;
(c) changes to the stage setup, lighting rig, or production configuration made after Fraser Hawkshaw Media Limited has set up its equipment;
(d) movement of performers outside agreed or anticipated filming areas; and
(e) lighting conditions, smoke effects, strobes, or other production elements that affect camera exposure or visibility during the performance.

18.7.2 The Client agrees that dissatisfaction of the Client or any End Client arising from any of the factors described in Section 18.7.1 shall not constitute grounds for non-payment, partial payment, refusal to accept the Deliverables, or a refund, where Fraser Hawkshaw Media Limited has performed the Services in accordance with this Agreement and the Confirmation Email.

18.7.3 Where the Client has specific requirements regarding camera angles, positions, or coverage priorities for a Full Set Capture, these must be communicated to Fraser Hawkshaw Media Limited in writing prior to the Event. Absent such prior instruction, all creative and technical decisions regarding camera placement, angles, and coverage shall be at the reasonable discretion of Fraser Hawkshaw Media Limited.

19. SAFETY, SECURITY, AND INSURANCE

19.1 Equipment Storage, Security, and Insurance:

19.1.1 The Client shall provide a secure, lockable area on-site for the storage of all Equipment when not in active use.

19.1.2 The Client acknowledges that Fraser Hawkshaw Media Limited's equipment insurance is conditional upon reasonable security measures being in place. Where a secure, lockable area is not provided, such Equipment may not be covered by insurance.

19.1.3 Without limiting Section 19.4, where the Client fails to provide adequate secure storage, the Client shall be responsible for any loss, theft, or damage to Equipment on-site arising from that failure, including the reasonable repair or replacement cost up to its total replacement value.

19.1.4 Fraser Hawkshaw Media Limited may provide the Client with an equipment schedule prior to the Event detailing the Equipment to be used. Where provided, the Client acknowledges receipt of this schedule and the replacement values stated therein.

19.1.5 Fraser Hawkshaw Media Limited shall take reasonable care in safeguarding Equipment; however, ultimate responsibility for providing a secure environment rests with the Client.

19.1.6 The Client acknowledges that failure to provide secure storage may result in operational limitations, including reduced unattended equipment deployment, which shall not constitute a failure of service.

19.1.7 Equipment Liability Acknowledgement

Where a secure, lockable area is not provided, the Client shall sign Fraser Hawkshaw Media Limited's Equipment Liability Acknowledgement before set-up. Once signed, it forms part of this Agreement and prevails over the Confirmation Email on equipment liability. Section 19.1.6 applies if it is not signed.

19.2 The Client shall ensure safe access for Fraser Hawkshaw Media Limited staff and equipment, including adherence to venue health and safety regulations.

19.3 All Equipment used by Fraser Hawkshaw Media Limited remains the sole property of Fraser Hawkshaw Media Limited at all times. No title or ownership of Equipment shall transfer to the Client under any circumstance, including loss, damage, or use during the Event.

19.4 Third-Party Interference: The Client shall be responsible for any loss, theft, or damage to Equipment caused by the Client, its representatives, venue staff, performers, attendees, or contractors while Equipment is on-site, including the reasonable repair or replacement cost up to its total replacement value, except to the extent caused by Fraser Hawkshaw Media Limited's own negligence or failure to take reasonable care under Section 19.1.5.

19.5 Emergency Situations: Fraser Hawkshaw Media Limited reserves the right to pause, relocate, or cease filming in the event of emergency, unsafe conditions, or other hazards. The Client shall remain responsible for fees for Services provided up to that point.

19.6 Camera Positioning and Interference

19.6.1 Cameras, tripods, stabilisers, and other recording Equipment may be positioned in fixed locations throughout the Venue to capture the Event.

19.6.2 Once positioned, such Equipment must not be moved, adjusted, touched, obstructed, or interfered with by any person other than authorised representatives of Fraser Hawkshaw Media Limited.

19.6.3 The Client acknowledges that interference with camera positions, including but not limited to moving tripods, touching mounted cameras, blocking camera angles, or causing vibration to surfaces supporting Equipment, may negatively affect framing, stability, focus, or overall video quality.

19.6.4 Fraser Hawkshaw Media Limited shall use reasonable care and industry-standard anti-vibration techniques to minimise the impact of environmental or structural vibration, including, where reasonably practicable, testing camera stability during soundcheck or setup.

19.6.5 The Client acknowledges that, despite such measures, vibration caused by factors beyond Fraser Hawkshaw Media Limited's control, including but not limited to bass frequencies, stage movement, crowd movement, or structural resonance cannot be fully eliminated, and no guarantee is given that footage will be entirely free from vibration.

19.6.6 Fraser Hawkshaw Media Limited shall not be liable for any loss of footage quality, unstable footage, missed moments, or unusable recordings resulting from interference, obstruction, vibration, or tampering with Equipment by the Client, venue staff, performers, attendees, or any third party.

19.6.7 Where interference or vibration-related issues occur, Fraser Hawkshaw Media Limited shall not be required to re-film, compensate, refund, or otherwise remedy any resulting reduction in video quality or coverage.

19.6.8 The Client is responsible for informing venue staff, performers, and attendees that recording Equipment must not be disturbed.

19.7 Lasers, Pyrotechnics, and Hazardous Effects

19.7.1 The Client shall inform Fraser Hawkshaw Media Limited in writing, prior to the Event, of any planned use of lasers, pyrotechnics, special effects, or other potentially hazardous production elements (collectively, "Hazardous Effects"), including the expected timing and nature of such effects.

19.7.2 Where such Hazardous Effects are planned, Fraser Hawkshaw Media Limited shall use reasonable efforts to coordinate with the Client, venue staff, or production teams to identify appropriate camera positions, timings, and safe operating zones to minimise risk to Equipment.

19.7.3 The Client acknowledges that lasers, pyrotechnics, and similar effects may pose a risk of damage to cameras, lenses, sensors, and other Equipment, particularly where high-powered lighting or direct exposure occurs.

19.7.4 Fraser Hawkshaw Media Limited shall not be liable for any damage to Equipment, disruption to filming, or loss of footage arising from Hazardous Effects, including where such effects interfere with visibility, exposure, or safe operation.

19.7.5 Where the Client fails to notify Fraser Hawkshaw Media Limited in advance of any Hazardous Effects, and such effects result in damage to Equipment, the Client shall be fully liable for the repair or replacement cost of the affected Equipment, up to its full replacement value.

19.7.6 The Client agrees to indemnify and hold harmless Fraser Hawkshaw Media Limited against any loss, damage, or expense arising from Hazardous Effects that were not properly disclosed prior to the Event.

19.8 Insurance

19.8.1 Fraser Hawkshaw Media Limited maintains public liability and equipment insurance, but coverage is contingent on reasonable care being taken and adherence to safety requirements outlined herein.

19.8.2 The Client may be asked to provide proof of venue insurance or to sign an Equipment Liability Acknowledgement under Section 19.1.7 if secure storage cannot be provided.

19.9 Outdoor Events and Weather Contingency

19.9.1 Where the Services are to be provided wholly or partly outdoors, the Client acknowledges that weather conditions, including but not limited to rain, wind, extreme heat, or extreme cold, may affect the safety of Equipment, the quality of the Deliverables, or Fraser Hawkshaw Media Limited's ability to perform the Services as planned.

19.9.2 The Client is responsible for providing, or ensuring the venue provides, adequate weatherproof shelter or covered positions for Equipment and crew during outdoor Events, where reasonably required.

19.9.3 Fraser Hawkshaw Media Limited reserves the right to relocate Equipment, pause filming, or adjust camera positions where weather conditions pose a risk to Equipment or crew safety, and shall not be liable for any resulting reduction in coverage or Deliverables.

19.9.4 Fraser Hawkshaw Media Limited shall not be liable for any damage to Equipment, loss of footage, or reduction in quality arising from weather conditions beyond its reasonable control, except where such damage results solely from Fraser Hawkshaw Media Limited's own failure to take reasonable precautions.

19.10 Health, Safety and Client Insurance

19.10.1 The Client shall give Fraser Hawkshaw Media Limited, in writing before the Event Date (or as soon as reasonably practicable), the site safety information that applies to the Event, including: Venue rules and restricted areas; risk assessments and emergency and evacuation procedures; known hazards (including working at height, rigging, electrical supply, crowd density and Hazardous Effects); and the name and contact details of an on-site safety contact.

19.10.2 The Client shall make sure Fraser Hawkshaw Media Limited's crew receive, without charge and on arrival, any safety induction the Venue or organiser requires.

19.10.3 The Client shall hold, or ensure the organiser or Venue holds, public liability insurance appropriate to the Event, and shall provide evidence of it on request.

19.10.4 Fraser Hawkshaw Media Limited and its crew may refuse, adjust, pause or withdraw from any task, position, rigging or Equipment placement (including any mast, elevated or crowd-facing position) that they reasonably consider unsafe, even where the Client or an End Client instructs otherwise. Direction given under Section 2.9 does not override this Section.

19.10.5 Acting under Section 19.10.4 is not a breach of this Agreement or a failure of service. Section 5 continues to apply, and Sections 2.9.5 and 19.5 are not limited.

19.10.6 The Client is responsible for the Event complying with the licensing, capacity and safety requirements that apply to it.

20. USE OF CLIENT MATERIALS

20.1 The Client represents that any materials they provide for use in Deliverables (logos, music, third-party footage) do not infringe any third-party rights.

20.2 The Client shall indemnify Fraser Hawkshaw Media Limited against any claims arising from the use of such materials, to the extent that such claim results from the Client's breach of this Agreement or infringement of third-party rights, and subject to the duty to mitigate losses.

20.3 The Client shall indemnify and hold harmless Fraser Hawkshaw Media Limited from any claims, demands, actions, or damages arising from:

(a) the Client's failure to obtain necessary consents for individuals appearing in the Event footage;
(b) infringement of third-party intellectual property, including music, performance, or other media used in the Deliverables;
(c) breach of any laws, regulations, or venue requirements related to the filming, recording, or use of the Deliverables; or
(d) any failure to obtain the authorities, consents or licences described in Section 4.10.

Such indemnity shall apply only to the extent that the claim arises from the Client's breach of this Agreement or failure to comply with applicable law, and shall be subject to the duty to mitigate losses.

21. DATA PROTECTION AND PRIVACY COMPLIANCE

21.1 Fraser Hawkshaw Media Limited shall process any personal data in accordance with applicable data protection laws, including the UK General Data Protection Regulation (UK GDPR) and the Data Protection Act 2018.

21.2 Personal data may include, but is not limited to, images or recordings of individuals, names, and contact details.

21.3 Fraser Hawkshaw Media Limited shall use such personal data solely for the purposes of providing the Services, including filming, editing, and delivery of Deliverables, and for portfolio or marketing purposes where permitted under Section 16.

21.4 The Client acknowledges that data protection, privacy, and recording laws vary between jurisdictions, and agrees that they are solely responsible for ensuring compliance with all applicable laws, regulations, and requirements relating to:

(a) the collection and recording of personal data;
(b) obtaining any required consents, permissions, or lawful bases; and
(c) the use, publication, or distribution of the Deliverables.

21.5 The Client represents and warrants that they have obtained all necessary consents, permissions, or lawful bases required under applicable law from individuals appearing in the Event footage, or are otherwise legally entitled to provide such data to Fraser Hawkshaw Media Limited for processing.

21.6 Fraser Hawkshaw Media Limited shall implement reasonable technical and organisational measures to protect personal data against unauthorised access, loss, destruction, or disclosure, in line with generally accepted industry standards.

21.7 The Client acknowledges that any failure to obtain necessary consents, provide appropriate notices, or comply with applicable data protection or privacy laws shall not make Fraser Hawkshaw Media Limited liable for any resulting claims, and the Client agrees to indemnify Fraser Hawkshaw Media Limited against any such claims to the extent they arise from the Client's breach of this Agreement or failure to comply with applicable law, and subject to the duty to mitigate losses.

21.8 The Client is responsible for ensuring that any required signage, notices, announcements, or disclosures are provided at the Event to inform attendees that filming and photography will take place, where required by applicable law or best practice.

21.9 The Client is responsible for obtaining any necessary filming permits, licences, or approvals required by the venue, local authorities, or applicable law. Fraser Hawkshaw Media Limited shall not be liable for failure to obtain such permissions, and any resulting penalties, fines, or restrictions shall be the responsibility of the Client.

21.10 Where required by applicable law, individuals may request that their personal data be removed, anonymised, or restricted. The Client may request that such changes be made to Deliverables, and Fraser Hawkshaw Media Limited may accommodate such

requests at its discretion and may charge additional fees for editing.

22. FORCE MAJEURE

22.1 Fraser Hawkshaw Media Limited shall not be liable for any delay or failure to perform Services due to a Force Majeure Event.

22.2 In the event of a Force Majeure Event, Fraser Hawkshaw Media Limited may, at its discretion, reschedule the Event, modify the Services, or cancel the Services. Where the Services are cancelled, the Client shall receive a refund of all prepayments made, including any Deposit, in respect of Services not performed, less any non-refundable costs already incurred by Fraser Hawkshaw Media Limited at the time of cancellation, including travel costs as described in Section 23.

22.3 The Client shall not be entitled to claim damages arising from delays or cancellations caused by Force Majeure Events.

22.4 Fraser Hawkshaw Media Limited shall not be liable for delays, rescheduling, or cancellation of Services due to government-imposed restrictions, pandemics, or other extraordinary events not reasonably foreseeable at the time of Booking.

22.5 For the avoidance of doubt, a decision by the Client or any third-party organiser to cancel, postpone, or curtail the Event for any reason (including weather) is not a Force Majeure Event, and Sections 14 and 15 shall apply.

22.6 Long-Stop

22.6.1 If a Force Majeure Event prevents or materially affects the Services for more than 30 consecutive days, and a new date has not been agreed, either party may end the Booking by written notice.

22.6.2 Where a Booking ends under Section 22.6.1, Section 22.2 applies to refunds and non-refundable costs, the Client shall pay for any Services already performed, and neither party has any further liability to the other for that Booking, except for sums already due.

23. TRAVEL DISRUPTION AND TRANSPORT FAILURE

23.1 Fraser Hawkshaw Media Limited shall not be liable for any failure or delay in attending the Event where such failure or delay is caused by travel disruption, including but not limited to flight cancellations, flight delays, missed connections, rail disruption, strikes, severe weather, or other transport-related issues beyond Fraser Hawkshaw Media Limited's reasonable control.

23.2 In the event of travel disruption, Fraser Hawkshaw Media Limited will make commercially reasonable efforts to rebook travel or arrange an alternative means of transport to attend the Event.

23.3 Where rebooking or alternative transport is not possible in time for the Event and the Services cannot be performed, the Client shall not be liable for the Service fee for the affected Event. The Client shall, however, remain responsible for reimbursement of any non-refundable or unrecoverable travel expenses reasonably incurred by Fraser Hawkshaw Media Limited in connection with the Booking, including but not limited to flights, rail travel, accommodation, or transfers.

23.4 Such travel disruption shall not constitute a breach of this Agreement, and Fraser Hawkshaw Media Limited shall not be liable for any consequential loss, damages, or claims arising from the inability to attend the Event due to such disruption.

23.5 Extended Travel Costs

Where travel disruption, border restrictions, cancellations, or other transport-related issues beyond the reasonable control of Fraser Hawkshaw Media Limited result in extended travel, delayed return, or enforced stay (including international travel), the Client agrees to remain liable for all reasonable additional costs incurred in connection with the Services. This includes, but is not limited to, additional accommodation, subsistence, transport, equipment rental extensions, insurance, storage, or related expenses. Such costs shall be invoiced to the Client and payable in accordance with Section 5.

24. PROFESSIONAL CONDUCT AND WORKING ENVIRONMENT

24.1 Fraser Hawkshaw Media Limited and its crew are entitled to work in a safe, professional, and respectful environment at all times during the provision of Services.

24.2 The Client shall ensure that Fraser Hawkshaw Media Limited personnel are not subjected to any of the following by the Client, their representatives, venue staff, performers, attendees, or any other third party present at the Event:

(a) physical assault, shoving, pushing, or any other form of unwanted physical contact directed at Fraser Hawkshaw Media Limited personnel;
(b) verbal abuse, sustained hostility, threatening behaviour, or intimidation directed at Fraser Hawkshaw Media Limited personnel; or
(c) any behaviour that a reasonable person would consider to constitute harassment, aggression, or conduct unbecoming of a professional working environment.

24.3 Fraser Hawkshaw Media Limited acknowledges that live event environments are by nature energetic and that incidental contact or casual language in a clearly good-natured context does not constitute a breach of this clause. This clause applies to behaviour that is deliberate, sustained, or directed at Fraser Hawkshaw Media Limited personnel.

24.4 Where Fraser Hawkshaw Media Limited reasonably determines that a breach of this clause has occurred, it reserves the right to:

(a) suspend filming immediately and remove itself and its crew from the situation;
(b) cease Services entirely for the remainder of the Event; and

(c) invoice for the full Service fee in respect of all work performed up to that point, which shall remain payable in accordance with Section 5.

24.5 Where Services are ceased under Section 24.4, this shall not constitute a breach of this Agreement by Fraser Hawkshaw Media Limited, and the Client shall not be entitled to any refund of fees already paid or reduction of fees outstanding.

24.6 Fraser Hawkshaw Media Limited shall not be liable for any Deliverables not completed as a result of ceasing Services under this clause, and the Client waives any claim arising from incomplete coverage resulting from such cessation.

24.7 Where Fraser Hawkshaw Media Limited considers that a breach of this clause may occur or is ongoing, it may first issue a verbal warning to the Client's authorised representative. Failure to remedy the behaviour following such warning shall entitle Fraser Hawkshaw Media Limited to invoke Section 24.4 without further notice.

24.8 Public Statements and Reviews

24.8.1 The Client agrees to raise any concerns regarding the Services or Deliverables directly with Fraser Hawkshaw Media Limited in the first instance, in accordance with Section 10.7, before posting any public review, comment, or statement regarding Fraser Hawkshaw Media Limited on social media, review platforms, or elsewhere.

24.8.2 Nothing in this Section prevents the Client from leaving an honest review of their experience. However, the Client agrees not to make any statement that is knowingly false, misleading, or defamatory regarding Fraser Hawkshaw Media Limited, its crew, or its work.

24.8.3 Where the Client publishes a statement that Fraser Hawkshaw Media Limited reasonably considers false, misleading, or defamatory, Fraser Hawkshaw Media Limited reserves the right to pursue any remedies available under this Agreement or applicable law, including requesting removal or correction of the statement.

25. SUBCONTRACTING, CREW, AND NON-SOLICITATION

25.1 Subcontracting and Crew

25.1.1 Fraser Hawkshaw Media Limited may engage subcontractors, freelancers, or crew members to assist in the provision of Services. All such personnel operate under the direction and supervision of Fraser Hawkshaw Media Limited and form no direct contractual relationship with the Client by virtue of their engagement on a project.

25.1.2 The Client's contractual relationship is solely with Fraser Hawkshaw Media Limited. The Client shall not issue direct instructions to, make arrangements with, or attempt to vary the working conditions of any crew member or subcontractor engaged by Fraser Hawkshaw Media Limited without prior written consent from Fraser Hawkshaw Media Limited.

25.1.3 Any instructions or feedback the Client wishes to communicate regarding crew performance or conduct must be directed to Fraser Hawkshaw Media Limited and not to individual crew members directly.

25.1.4 Fraser Hawkshaw Media Limited shall remain responsible for the conduct and performance of its crew and subcontractors in relation to the Services, subject to the limitations set out elsewhere in this Agreement.

25.2 Non-Solicitation

25.2.1 The Client agrees that during the term of any engagement with Fraser Hawkshaw Media Limited and for a period of 12 months following the conclusion of the most recent Event or project, the Client shall not:

(a) directly approach, solicit, engage, or hire any crew member, subcontractor, or freelancer introduced to the Client through Fraser Hawkshaw Media Limited, whether on a freelance, employed, or any other basis;
(b) encourage or induce any such individual to cease working with or reduce their engagement with Fraser Hawkshaw Media Limited; or
(c) engage any such individual to provide services that are the same as or substantially similar to those provided by Fraser Hawkshaw Media Limited under this Agreement.

25.2.2 For the avoidance of doubt, this clause applies regardless of whether initial contact between the Client and the relevant individual was made directly by Fraser Hawkshaw Media Limited or incidentally through the individual's presence at an Event.

25.2.3 Where the Client is found to have breached this clause, Fraser Hawkshaw Media Limited reserves the right to invoice the Client a referral fee equivalent to 20% of the gross value of any fees paid or payable to the relevant individual for work carried out for or on behalf of the Client during the restricted period, in addition to any other remedies available under this Agreement or applicable law. The Client acknowledges that this fee is a proportionate measure of Fraser Hawkshaw Media Limited's legitimate interest in the crew and subcontractor relationships it has sourced and developed, and is not a penalty.

25.2.4 Nothing in this clause shall prevent any individual from responding to a general public advertisement for work not specifically targeted at Fraser Hawkshaw Media Limited personnel.

25.2.5 The Client acknowledges that the restrictions in this clause are reasonable and necessary to protect the legitimate business interests of Fraser Hawkshaw Media Limited, including its investment in sourcing, training, and developing its crew and subcontractor relationships, and that those restrictions and the fee in Section 25.2.3 go no further than is needed to protect those interests.

25.3 Key Person and Crew Unavailability

25.3.1 Where Fraser Hawkshaw, or a specific crew member named or implied in the Confirmation Email, becomes unavailable to attend the Event due to illness, injury, accident, or other circumstances beyond reasonable control, Fraser Hawkshaw Media Limited reserves the right to send a suitably qualified substitute to perform the Services in their place.

25.3.2 Fraser Hawkshaw Media Limited will use reasonable efforts to notify the Client as soon as reasonably practicable where a substitution is required.

25.3.3 Where no suitable substitute is available and the Services cannot be performed as a result, Fraser Hawkshaw Media Limited shall not be liable for any loss, damages, or consequential claims arising from the non-attendance, and the Client's sole remedy shall be a refund of any prepayments made in respect of Services not performed, in accordance with Section 5.12.3.

25.3.4 The Client acknowledges that any preference for a specific individual to perform the Services, unless expressly guaranteed in writing in the Confirmation Email, does not form a contractual guarantee of that individual's attendance.

26. DRONE OPERATIONS

26.1 General

26.1.1 Where drone operations are required as part of the Services, Fraser Hawkshaw Media Limited may engage a qualified third-party drone operator to carry out such operations on behalf of the project. Drone operations do not form a core part of Fraser Hawkshaw Media Limited's standard Services and are arranged as an additional element at the Client's request or where agreed in the Confirmation Email.

26.1.2 Any third-party drone operator engaged by Fraser Hawkshaw Media Limited shall hold all required permissions, qualifications, and insurance in accordance with UK Civil Aviation Authority (CAA) regulations, or the relevant regulatory authority where the Event takes place outside the United Kingdom.

26.1.3 The engagement of a third-party drone operator does not create any direct contractual relationship between that operator and the Client. The Client's contractual relationship in respect of drone operations remains solely with Fraser Hawkshaw Media Limited, subject to the limitations set out in this Section.

26.2 Regulatory Compliance and Permissions

26.2.1 Drone operations are subject to strict regulation and are dependent on a number of factors outside the reasonable control of Fraser Hawkshaw Media Limited, including but not limited to:

(a) CAA regulations and Operational Authorisations;
(b) airspace restrictions, temporary flight restrictions, or no-fly zones in effect at or near the venue;
(c) permissions required from the venue, landowner, local authority, or relevant emergency services;
(d) aviation authority requirements in the relevant jurisdiction where the Event takes place outside the United Kingdom; and
(e) weather conditions, wind speed, visibility, or other environmental factors affecting safe flight operations.

26.2.2 The Client is responsible for ensuring that the venue, event site, or location is suitable for drone operations and for obtaining any permissions required from the venue or landowner prior to the Event. Fraser Hawkshaw Media Limited shall not be liable for any failure to obtain such permissions, and any resulting inability to conduct drone operations shall not constitute a failure of service.

26.2.3 Fraser Hawkshaw Media Limited will use reasonable efforts to identify and communicate any known regulatory restrictions or permission requirements in advance of the Event. However, the Client acknowledges that restrictions may arise at short notice and that Fraser Hawkshaw Media Limited cannot guarantee that drone operations will be permitted or possible on the day.

26.3 Failure or Inability to Operate

26.3.1 Where drone operations cannot be carried out on the day due to regulatory restrictions, airspace closures, venue refusal, adverse weather, equipment failure, or any other circumstances beyond the reasonable control of Fraser Hawkshaw Media Limited or the engaged operator, this shall not constitute a breach of this Agreement.

26.3.2 Where drone operations form a separately priced element of the Services and cannot be performed for reasons set out in Section 26.3.1, Fraser Hawkshaw Media Limited shall use reasonable efforts to agree an appropriate reduction in fees attributable specifically to the drone element. No further liability shall attach to Fraser Hawkshaw Media Limited in such circumstances.

26.3.3 Fraser Hawkshaw Media Limited shall not be liable for any consequential loss, reputational damage, or missed coverage arising from the inability to conduct drone operations, regardless of the reason.

26.4 Liability for Drone Operations

26.4.1 Fraser Hawkshaw Media Limited shall take reasonable steps to ensure that any third-party drone operator engaged is suitably qualified, insured, and operating within applicable regulations at the time of engagement.

26.4.2 Beyond the obligation set out in Section 26.4.1, Fraser Hawkshaw Media Limited shall not be liable for any loss, damage, injury, or regulatory breach arising from the actions or omissions of a third-party drone operator during the course of the Event.

26.4.3 The Client acknowledges that drone operations carry inherent risks, including but not limited to equipment malfunction, signal interference, and environmental factors, and agrees that Fraser Hawkshaw Media Limited shall not be held liable for any such risks beyond the limits set out in Section 17.

26.4.4 Where drone operations take place outside the United Kingdom, the Client accepts responsibility for ensuring compliance with all applicable local aviation laws, permit requirements, and operational restrictions. Fraser Hawkshaw Media Limited shall not be liable for any fines, penalties, or enforcement action arising from non-compliance with local regulations where the Client has failed to obtain or facilitate the necessary permissions.

27. INTERNATIONAL SHOOTS AND OVERSEAS EVENTS

27.1 General

27.1.1 Where Services are provided outside the United Kingdom, the provisions of this Section apply in addition to all other terms of this Agreement.

27.1.2 Fraser Hawkshaw Media Limited will use reasonable professional skill and care in planning and executing Services at international locations. However, the Client acknowledges that overseas shoots involve additional regulatory, logistical, and operational complexities that are in many cases outside the reasonable control of Fraser Hawkshaw Media Limited.

27.2 Client Responsibilities for Local Compliance

27.2.1 The Client is solely responsible for ensuring that the Event, venue, and location are suitable for filming and that all necessary permissions, licences, and approvals have been obtained under the laws and regulations of the relevant jurisdiction prior to the Event Date. This includes but is not limited to:

(a) local filming permits or media production licences required by national, regional, or municipal authorities;
(b) permissions required from venue owners, private landowners, or event organisers specific to filming and recording activities;
(c) compliance with local data protection, privacy, and recording laws governing the capture and use of footage of individuals;
(d) any restrictions imposed by local law on the use of specific equipment, including drones, wireless transmission systems, or broadcast technology; and
(e) any permits or authorisations required for the live broadcast or streaming of content from the relevant jurisdiction.

27.2.2 Fraser Hawkshaw Media Limited shall not be liable for any failure to obtain the permissions set out in Section 27.2.1, and any resulting inability to perform the Services, restrictions on filming, or enforcement action by local authorities shall not constitute a breach of this Agreement by Fraser Hawkshaw Media Limited.

27.2.3 Any fines, penalties, confiscation of equipment, or enforcement action arising from the Client's failure to obtain the necessary local permissions or ensure compliance with applicable local law shall be the sole responsibility of the Client. The Client agrees to indemnify Fraser Hawkshaw Media Limited against any loss, cost, or expense arising from such failure.

27.3 Equipment, Customs, and Carnets

27.3.1 Fraser Hawkshaw Media Limited shall be responsible for arranging the transportation of its Equipment to and from the international location, subject to Section 23 in respect of travel disruption.

27.3.2 Where an ATA Carnet or equivalent customs documentation is required for the temporary importation of professional Equipment into the relevant jurisdiction, Fraser Hawkshaw Media Limited will use reasonable efforts to obtain such documentation in advance of the Event. The cost of obtaining any such documentation shall be invoiced to the Client and shall be payable in accordance with Section 5.

27.3.3 The Client is responsible for providing Fraser Hawkshaw Media Limited with sufficient advance notice of the international location, venue, and any known customs or importation requirements to allow reasonable time for the preparation of necessary documentation. Fraser Hawkshaw Media Limited shall not be liable for any delays, additional costs, or inability to perform Services arising from insufficient notice.

27.3.4 Where Equipment is detained, confiscated, or delayed by customs or border control authorities, Fraser Hawkshaw Media Limited shall not be liable for any resulting impact on the Services, Deliverables, or delivery timelines. Fraser Hawkshaw Media Limited will use commercially reasonable efforts to resolve such situations as quickly as possible.

27.3.5 Any customs duties, import taxes, or associated charges levied on Equipment by the relevant jurisdiction shall be invoiced to the Client and shall be payable in accordance with Section 5, unless Fraser Hawkshaw Media Limited is found to have caused such charges through its own error or negligence.

27.4 Local Conditions and Operational Limitations

27.4.1 Fraser Hawkshaw Media Limited shall not be liable for any reduction in service quality, coverage, or Deliverables arising from local conditions outside its reasonable control, including but not limited to:

(a) power supply instability, voltage differences, or unavailability of suitable power infrastructure;
(b) internet connectivity limitations affecting live streaming or data transfer;
(c) local environmental conditions including extreme heat, humidity, dust, or other factors affecting Equipment performance;
(d) restrictions imposed by local authorities, border control, or security personnel on the day of the Event; or
(e) language barriers, communication difficulties, or logistical challenges specific to the local environment.

27.4.2 Where local conditions result in a material impact on the Services, Fraser Hawkshaw Media Limited will communicate this to the Client as soon as reasonably practicable and will use reasonable efforts to adapt its approach accordingly.

27.5 Currency and Additional Costs

27.5.1 Where Services are provided internationally, any additional costs incurred by Fraser Hawkshaw Media Limited in connection with the overseas element of the Services — including but not limited to local taxes, currency conversion costs, bank transfer fees, locally hired equipment or support, translation services, or additional insurance premiums — shall be invoiced to the Client at cost and shall be payable in accordance with Section 5.

27.5.2 All fees quoted by Fraser Hawkshaw Media Limited are in pounds sterling (GBP) unless otherwise agreed in writing. Where payment is made in a foreign currency, the Client shall bear any costs arising from currency conversion or international transfer fees.

27.5.3 Fraser Hawkshaw Media Limited reserves the right to request advance payment or an increased Deposit for international shoots in recognition of the additional financial exposure involved. Any such requirement will be communicated at the time of Booking.

27.6 Governing Law

27.6.1 Notwithstanding the international location of the Event, this Agreement shall in all cases be governed by and construed in accordance with the laws of England and Wales in accordance with Section 30, and the Client irrevocably submits to the jurisdiction of the courts of England and Wales in respect of any dispute arising under or in connection with this Agreement.

28. EXCLUSIVITY AND THIRD-PARTY CAMERA OPERATORS

28.1 General

28.1.1 Fraser Hawkshaw Media Limited does not operate on an exclusive basis unless exclusivity has been expressly agreed in writing and confirmed in the Confirmation Email. The Client is not prohibited from engaging other videographers, photographers, or camera operators for the same Event.

28.1.2 However, the Client acknowledges that the presence of other camera operators, photographers, or filming personnel at the Event may materially affect the ability of Fraser Hawkshaw Media Limited to deliver the Services as planned, and agrees to the provisions of this Section accordingly.

28.2 Notification of Other Operators

28.2.1 The Client shall inform Fraser Hawkshaw Media Limited in writing prior to the Event if any other videographers, photographers, live streamers, broadcast crews, or camera operators will be present at the Event in any capacity.

28.2.2 Such notification shall include, where known, the number of operators, their intended positions, the nature of their coverage, and the equipment they intend to deploy.

28.2.3 Failure to notify Fraser Hawkshaw Media Limited of the presence of other operators prior to the Event shall constitute a breach of this clause, and Fraser Hawkshaw Media Limited shall not be liable for any resulting impact on the Services or Deliverables.

28.3 Impact on Services

28.3.1 Fraser Hawkshaw Media Limited shall not be liable for any reduction in coverage quality, missed moments, obstructed angles, or compromised Deliverables arising from the actions, positioning, or equipment of any third-party camera operator or filming crew present at the Event, including but not limited to:

(a) obstruction of camera angles or sight-lines by other operators or their equipment;
(b) interference with Fraser Hawkshaw Media Limited's wireless systems, audio feeds, or transmission equipment caused by third-party equipment;
(c) conflicting instructions regarding camera positioning issued by or on behalf of other operators;
(d) physical disruption to Fraser Hawkshaw Media Limited's Equipment caused by the movement or placement of third-party operators or their equipment; or
(e) any reduction in available camera positions, rigging points, or filming locations as a result of third-party operator requirements.

28.3.2 Where Fraser Hawkshaw Media Limited identifies on-site that the presence of other operators is causing or is likely to cause a material impact on the Services, it will communicate this to the Client's authorised representative as soon as reasonably practicable. Fraser Hawkshaw Media Limited will use reasonable efforts to adapt its setup and approach to minimise any resulting impact but cannot guarantee that coverage will be unaffected.

28.3.3 Any impact on the Services or Deliverables arising from the presence of third-party operators shall not entitle the Client to a reduction in fees, refund, or claim against Fraser Hawkshaw Media Limited.

28.4 Coordination and Access

28.4.1 Where multiple camera operators or filming crews are present at the Event, the Client is responsible for coordinating access, positioning, and any shared infrastructure between all parties. Fraser Hawkshaw Media Limited is under no obligation to share rigging points, power supplies, audio feeds, network connections, or other resources with third-party operators unless expressly agreed in writing in advance.

28.4.2 Fraser Hawkshaw Media Limited shall not be responsible for resolving disputes or conflicts between itself and any third-party operator regarding positioning, access, or equipment. Any such disputes shall be escalated to the Client's authorised representative for resolution.

28.4.3 Fraser Hawkshaw Media Limited shall not be liable for any delay to setup, reduced filming time, or operational disruption caused by unresolved conflicts with third-party operators.

28.5 Exclusivity Agreement

28.5.1 Where the Client wishes to engage Fraser Hawkshaw Media Limited on an exclusive basis — meaning no other videographers, camera operators, or filming crews will be present at the Event — this must be agreed and confirmed in writing prior to Booking and will be reflected in the Confirmation Email.

28.5.2 Where exclusivity is agreed, the Client warrants that no other filming personnel will be present at the Event without the prior written consent of Fraser Hawkshaw Media Limited. Any breach of this warranty shall be treated as a material breach of this Agreement, entitling Fraser Hawkshaw Media Limited to the remedies set out in Section 31.12. Section 28.3 shall apply in full, and any exclusivity fee paid under Section 28.5.3 shall not be refunded.

28.5.3 An exclusivity arrangement may be subject to an additional fee at the discretion of Fraser Hawkshaw Media Limited, which will be communicated and agreed at the time of Booking.

29. CONFIDENTIALITY

29.1 General

29.1.1 Each party acknowledges that in connection with this Agreement they may receive or have access to information that is confidential or proprietary to the other party, including but not limited to business information, event details, creative concepts, pricing, client lists, technical methods, and any other information that a reasonable person would consider to be confidential in nature ("Confidential Information").

29.1.2 Each party agrees to keep the other party's Confidential Information strictly confidential and not to disclose it to any third party without the prior written consent of the disclosing party, except as permitted under this Section.

29.1.3 Each party agrees to use the other party's Confidential Information solely for the purposes of performing or receiving the Services under this Agreement and for no other purpose.

29.2 Fraser Hawkshaw Media Limited's Confidential Information

29.2.1 The Client acknowledges that the following shall constitute Confidential Information belonging to Fraser Hawkshaw Media Limited:

(a) pricing, rates, and fee structures provided in quotes, invoices, or Confirmation Emails;
(b) technical methods, workflows, equipment configurations, and production processes used in the delivery of the Services;
(c) the identity, contact details, and working arrangements of Fraser Hawkshaw Media Limited's crew members, subcontractors, and suppliers; and
(d) any other information provided by Fraser Hawkshaw Media Limited in connection with the Services that is identified as confidential or that a reasonable person would consider to be confidential.

29.2.2 The Client shall not share Fraser Hawkshaw Media Limited's pricing or fee structures with any third party, including other production companies, videographers, or competing service providers, without the prior written consent of Fraser Hawkshaw Media Limited.

29.3 Client's Confidential Information

29.3.1 Fraser Hawkshaw Media Limited acknowledges that the following may constitute Confidential Information belonging to the Client:

(a) details of the Event, including lineup, scheduling, production plans, and any unreleased or embargoed content;
(b) details of the Client's business operations, commercial relationships, and strategic plans disclosed in connection with the Booking; and
(c) any footage, Deliverables, or materials relating to the Event that the Client has indicated are confidential or subject to embargo prior to a specified release date.

29.3.2 Where the Client wishes Fraser Hawkshaw Media Limited to treat specific Event details or Deliverables as confidential, this must be communicated in writing prior to the Event Date. Fraser Hawkshaw Media Limited will use reasonable efforts to honour such requests subject to the provisions of this Section.

29.3.3 Where a confidentiality requirement is agreed in writing, Fraser Hawkshaw Media Limited shall not publish, share, or use any footage or Deliverables from the Event for portfolio or marketing purposes until the embargo period has expired or the Client has provided written consent, notwithstanding Section 16.4.

29.4 Permitted Disclosures

29.4.1 Neither party shall be in breach of this Section where disclosure of Confidential Information is:

(a) required by law, court order, or the order of any regulatory or governmental authority;
(b) made to professional advisers, accountants, or legal representatives who are themselves bound by equivalent obligations of confidentiality;
(c) made with the prior written consent of the other party; or
(d) of information that was already in the public domain at the time of disclosure through no fault of the receiving party.

29.4.2 Where either party is required to disclose Confidential Information by law or regulatory order, they shall, where permitted to do so, notify the other party as soon as reasonably practicable prior to making such disclosure.

29.5 Portfolio and Marketing Use

29.5.1 Notwithstanding the general confidentiality obligations in this Section, Fraser Hawkshaw Media Limited's rights to use Deliverables for portfolio and marketing purposes under Section 16 shall remain in full force except where a specific written confidentiality or embargo agreement has been made under Section 29.3.2.

29.5.2 Where a confidentiality agreement is in place, Fraser Hawkshaw Media Limited's portfolio and marketing rights under Section 16 shall be suspended for the duration of any agreed embargo period and shall resume in full upon expiry of that period or receipt of written consent from the Client.

29.6 Duration of Confidentiality Obligations

29.6.1 The confidentiality obligations set out in this Section shall apply during the term of this Agreement and shall continue for a period of 2 years following the conclusion of the most recent Event or project between the parties, unless a longer period is agreed in writing.

29.6.2 Obligations of confidentiality in respect of information that constitutes a trade secret under applicable law shall continue indefinitely beyond the term set out in Section 29.6.1.

29.7 Remedies

29.7.1 Each party acknowledges that a breach of this Section may cause the other party significant harm that cannot adequately be compensated by damages alone, and that the non-breaching party shall be entitled to seek injunctive or other equitable relief in addition to any other remedies available under this Agreement or applicable law.

29.7.2 Nothing in this Section shall limit either party's right to pursue any other remedy available to them in respect of a breach of confidentiality.

30. GOVERNING LAW, SEVERABILITY, AND COMPLIANCE

30.1 This Agreement and any dispute or claim (including non-contractual disputes or claims) arising out of or in connection with it or its subject matter shall be governed by and construed in accordance with the laws of England and Wales.

30.2 The parties irrevocably agree that the courts of England and Wales shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter.

30.3 Nothing in this clause shall prevent either party from seeking injunctive or equitable relief in any court of competent jurisdiction where necessary to protect its rights.

30.4 The parties agree to use reasonable efforts to resolve any dispute through good faith negotiation before commencing formal legal proceedings.

30.4A Mediation

30.4A.1 Where a dispute cannot be resolved through good faith negotiation in accordance with Section 30.4, either party may propose referral of the dispute to mediation before commencing formal legal proceedings. Both parties agree to consider such a proposal in good faith.

30.4A.2 Where both parties agree to mediation, they shall endeavour to agree on a suitably qualified independent mediator. If the parties cannot agree on a mediator within 14 days of a written request to mediate, either party may apply to the Centre for Effective Dispute Resolution (CEDR) or the Civil Mediation Council (CMC) to appoint one.

30.4A.3 The costs of mediation shall be shared equally between the parties unless otherwise agreed in writing.

30.4A.4 Nothing in this Section shall prevent either party from seeking urgent injunctive or other interim relief from a court where necessary to protect their rights, nor shall it require either party to pursue mediation before commencing legal proceedings where doing so would cause material prejudice.

30.5 Severability: If any provision of these Terms is found to be invalid, unlawful, or unenforceable, the remaining provisions shall remain in full force and effect.

30.6 Compliance with Applicable Law

30.6.1 Fraser Hawkshaw Media Limited shall provide the Services in accordance with the applicable laws of England and Wales.

30.6.2 Nothing in this Agreement shall exclude, restrict, or override any rights or remedies which the Client may have under applicable law where such rights or remedies cannot lawfully be excluded or restricted.

30.6.3 If any provision of this Agreement is inconsistent with applicable law, that provision shall be interpreted and applied to the minimum extent necessary to make it lawful, valid, and enforceable, and the remainder of the Agreement shall remain in full force and effect.

30.6.4 Where the Client is a Consumer, nothing in this Agreement shall affect any statutory rights which cannot lawfully be excluded or restricted.

30.7 Consumer Clients

30.7.1 This Section applies only where the Client is an individual acting wholly or mainly outside their trade, business, craft, or profession (a "Consumer"). Where this Section conflicts with any other provision of this Agreement, this Section shall prevail.

30.7.2 Where a Booking is made at a distance (including by email, telephone, or online) or away from Fraser Hawkshaw Media Limited's business premises, the Consumer may cancel the Booking without giving any reason within 14 days of the Booking being formed, by giving written notice in accordance with Section 14.1. Any Deposit or prepayment shall be refunded within 14 days of receipt of such notice.

30.7.3 Where the Consumer expressly requests in writing that the Services begin within the 14-day cancellation period and then cancels within that period, the Consumer shall pay a proportionate amount for the Services provided up to the time of cancellation. Where the Services have been fully performed within that period at the Consumer's express request, the Consumer acknowledges that the right to cancel will be lost.

30.7.4 After the 14-day cancellation period, Section 15 shall apply, save that any cancellation charges and any Deposit retained shall not exceed a reasonable amount reflecting the costs incurred and losses suffered by Fraser Hawkshaw Media Limited as a result of the cancellation.

30.7.5 Nothing in Sections 5.14, 10.7, 17.10, or 24.8 shall restrict a Consumer's statutory rights, including the right to leave an honest review or to bring a claim within the applicable statutory limitation period.

31. MISCELLANEOUS

31.1 The Client may not assign or transfer any rights or obligations under these Terms without prior written consent.

31.2 Fraser Hawkshaw Media Limited may assign or subcontract Services as necessary.

31.3 Failure by Fraser Hawkshaw Media Limited to enforce any provision of these Terms shall not constitute a waiver of rights.

31.4 Any notice under these Terms shall be in writing and sent by email to the address from which the Confirmation Email was sent (for Fraser Hawkshaw Media Limited) or the address the Booking was made from (for the Client), or by post to the registered office of Fraser Hawkshaw Media Limited. Emails are deemed received on the next working day.

31.5 Headings are for convenience only and shall not affect interpretation.

31.6 Confirmation of Services via email or other electronic communication, or by conduct in accordance with Section 2.6.3, constitutes agreement to these Terms and Conditions. The Client's own purchase order, booking form, or terms shall not apply unless expressly accepted in writing by Fraser Hawkshaw Media Limited.

31.7 Client Misrepresentation

31.7.1 Where the Client materially misrepresents the nature, scale, duration, or requirements of the Event, Fraser Hawkshaw Media Limited reserves the right to:

(a) modify Services or Deliverables;
(b) charge additional fees commensurate with the actual scope of Services required; or
(c) terminate Services without liability.

31.7.2 The Client acknowledges that accurate representation of the Event and associated requirements is essential for Fraser Hawkshaw Media Limited to provide Services effectively and efficiently.

31.8 Entire Agreement: This Agreement constitutes the entire agreement between Fraser Hawkshaw Media Limited and the Client and supersedes all prior agreements, representations, and understandings. The Client confirms that it has not relied on any statement, representation, warranty or promise, written or oral, that is not set out in this Agreement. Nothing in this Section limits liability for fraud or fraudulent misrepresentation (Section 17.0), and it does not apply to a Consumer to the extent it conflicts with Section 30.7.

31.9 Variation and Changes to this Agreement

31.9.1 No variation, amendment, modification, or waiver of any term of this Agreement shall be valid or binding on either party unless it is agreed and confirmed in writing by an authorised representative of Fraser Hawkshaw Media Limited.

31.9.2 For the purposes of this Section, writing includes email correspondence sent from a verified Fraser Hawkshaw Media Limited email address. Verbal agreements, verbal instructions given on-site, text messages, social media messages, or other informal communications shall not constitute a valid variation of this Agreement unless subsequently confirmed in writing by Fraser Hawkshaw Media Limited.

31.9.3 The Client acknowledges that Fraser Hawkshaw Media Limited's crew members, subcontractors, and other personnel present at the Event are not authorised to agree to variations of this Agreement on behalf of Fraser Hawkshaw Media Limited. Only Fraser Hawkshaw Media Limited's director, Fraser Hawkshaw, has authority to agree and confirm variations in writing on behalf of Fraser Hawkshaw Media Limited.

31.10 On-Site Requests and Scope Changes

31.10.1 Where the Client or their authorised representative makes a request on-site that would constitute a change to the agreed scope of Services — including but not limited to additional cameras, additional coverage areas, changes to agreed filming positions, additional Deliverables, or extended filming time — Fraser Hawkshaw Media Limited shall use reasonable efforts to accommodate such requests where operationally practicable.

31.10.2 Any such on-site request that is accommodated by Fraser Hawkshaw Media Limited shall be treated as an Extra Deliverable or scope change in accordance with Sections 2.4 and 8.3, and shall be chargeable at Fraser Hawkshaw Media Limited's prevailing rates regardless of whether a formal written variation was agreed at the time.

31.10.3 Fraser Hawkshaw Media Limited's decision to accommodate an on-site request on one occasion shall not be construed as an agreement to vary the terms of this Agreement permanently, nor shall it set a precedent for future engagements or constitute a waiver of any rights under this Agreement.

31.10.4 Where Fraser Hawkshaw Media Limited is unable to accommodate an on-site scope change request — whether due to operational constraints, equipment limitations, crew availability, or any other reason — this shall not constitute a failure of service or entitle the Client to any reduction in fees.

31.11 Waiver

31.11.1 No failure or delay by Fraser Hawkshaw Media Limited in exercising any right, power, or remedy under this Agreement shall operate as a waiver of that right, power, or remedy.

31.11.2 A waiver of any breach of this Agreement by Fraser Hawkshaw Media Limited shall not be construed as a waiver of any subsequent breach of the same or any other provision.

31.11.3 Where Fraser Hawkshaw Media Limited agrees to waive any right or obligation under this Agreement on a specific occasion, such waiver shall apply to that occasion only and shall not affect Fraser Hawkshaw Media Limited's rights in respect of any future or ongoing obligations.

31.12 Breach of Agreement

31.12.1 Without prejudice to any specific remedy set out elsewhere in this Agreement, where the Client breaches any provision of this Agreement, Fraser Hawkshaw Media Limited reserves the right to: (a) suspend or terminate the Services immediately, without liability, and invoice for all work performed and costs incurred up to that point; (b) recover from the Client any direct losses, costs, or expenses reasonably incurred as a result of the breach, including but not limited to legal costs, administrative costs, and debt recovery costs incurred in enforcing this Agreement or pursuing any remedy under it; (c) treat the breach as a material breach entitling Fraser Hawkshaw Media Limited to terminate this Agreement and any related Bookings without further obligation; and (d) pursue any other remedy available under this Agreement or applicable law.

31.12.2 The rights and remedies under this Section are cumulative and not exclusive of any other rights or remedies available under this Agreement or applicable law.

31.12.3 Where a specific remedy for a particular breach is set out elsewhere in this Agreement (including but not limited to Sections 16.9.2, 16.15.2, 19.7.6, 20.2, 20.3, 21.7, 24.4, 25.2.3, 28.5.2, 29.7, and 31.7), that specific remedy applies in addition to, not instead of, the general remedies in this Section.

31.13 A person who is not a party to this Agreement shall have no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any of its terms.

31.14 Order of Precedence

31.14.1 Where there is any conflict or inconsistency between the documents forming this Agreement, the following order of precedence shall apply:

(a) any variation agreed in writing in accordance with Section 31.9;
(b) any Equipment Liability Acknowledgement;
(c) the Confirmation Email;
(d) these Terms and Conditions;
(e) the Client Onboarding Form; and
(f) any quote issued by Fraser Hawkshaw Media Limited.

31.14.2 Nothing in the Confirmation Email, the Client Onboarding Form or any quote shall override Section 17.0 or Section 30.7.

31.15 Anti-Bribery and Modern Slavery

31.15.1 Each party shall comply with the Bribery Act 2010 and the Modern Slavery Act 2015. Neither party shall offer, give, request, or accept any bribe or improper payment in connection with this Agreement.

31.15.2 Fraser Hawkshaw Media Limited shall take reasonable steps to ensure its crew, subcontractors, and suppliers engaged on the Services comply with this Section.

31.15.3 Either party may terminate this Agreement with immediate effect by written notice if the other party commits a material breach of this Section.

31.16 Survival

31.16.1 Sections 2.8, 2.9, 4.10, 5, 12, 15, 16, 17, 19.1.3, 19.4, 20, 21, 25.2, 29, 30, 31, and 31.19, and any other provision which by its nature is intended to continue, shall survive termination or expiry of any Booking.

31.17 Version and Changes

31.17.1 Each version of these Terms is identified by a version number and Effective Date on its cover page. The version in force on the date the Client accepts the quote or confirms the Booking under Section 2.6 applies to that Booking, including any Series Booking accepted together. The Confirmation Email will identify or link to that version.

31.17.2 Fraser Hawkshaw Media Limited may update these Terms at any time for future Bookings. An update does not change an existing Booking unless the Client agrees in writing under Section 31.9.

31.17.3 Post-Event Editing, and any other work confirmed as a new Booking (Section 11.2), is governed by the version in force on the date of the new Confirmation Email.

31.17.4 Fraser Hawkshaw Media Limited keeps a copy of every version and will produce the version that applies to a Booking on request. The current version is published at fraserhawkshaw.com/terms.

31.18 Interpretation

31.18.1 In these Terms: (a) “these Terms”, “these Terms and Conditions” and “the Terms and Conditions” mean the same document; (b) “this Agreement” has the meaning given at the start of these Terms; (c) “including” and similar words mean “including without limitation”; (d) a reference to a Section is to a Section of these Terms; (e) a reference to legislation is to it as amended or replaced; and (f) “in writing” includes email, but a variation must also meet Section 31.9.

31.19 Electronic Signature

31.19.1 This Agreement, and any document forming part of it (including the Client Onboarding Form, any Equipment Liability Acknowledgement and any guarantee under Section 5.17), may be signed electronically and in counterparts. Each signed counterpart is as valid and binding as a signed original.

FRASER HAWKSHAW MEDIA